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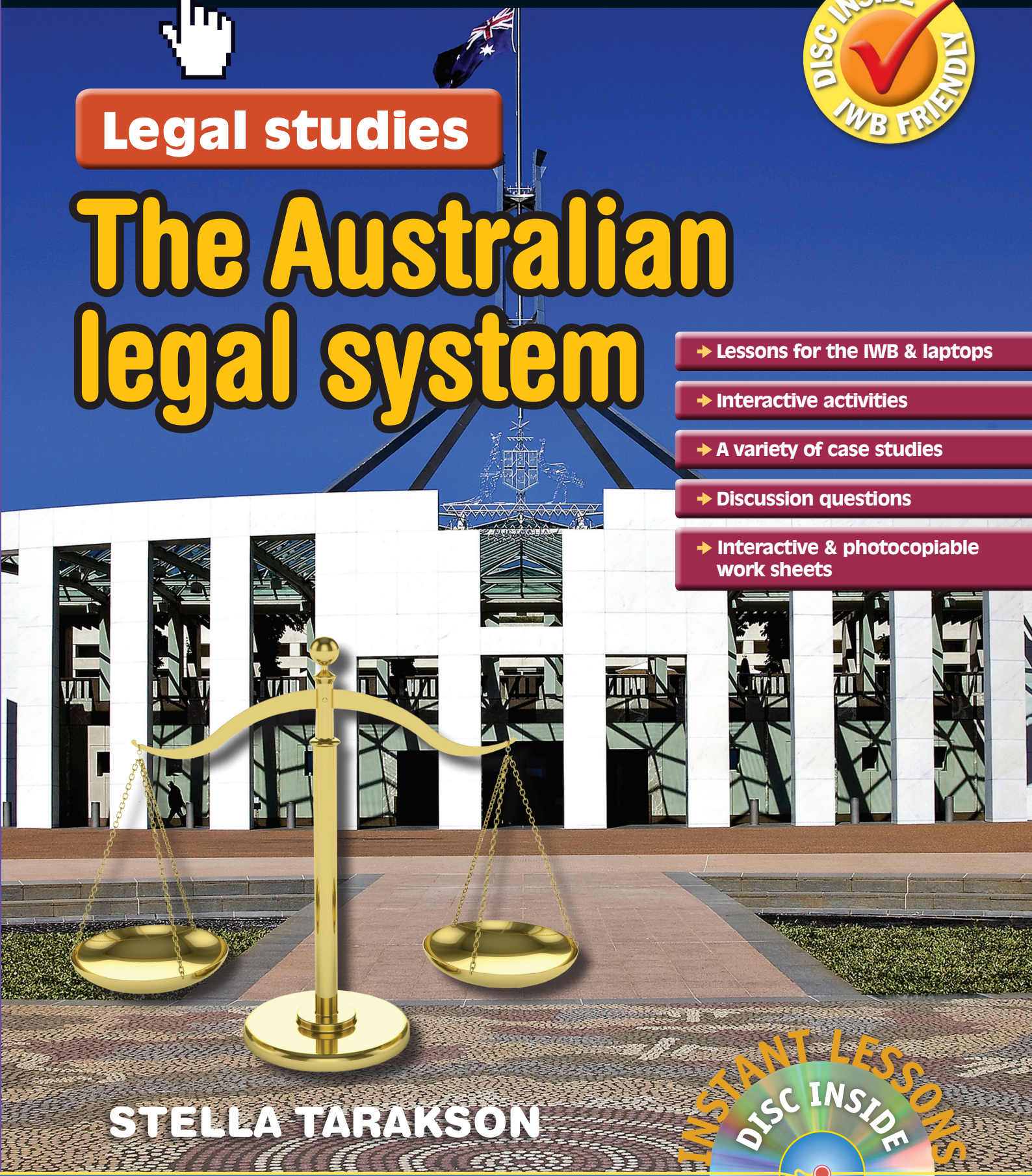

STELLA TARAKSON

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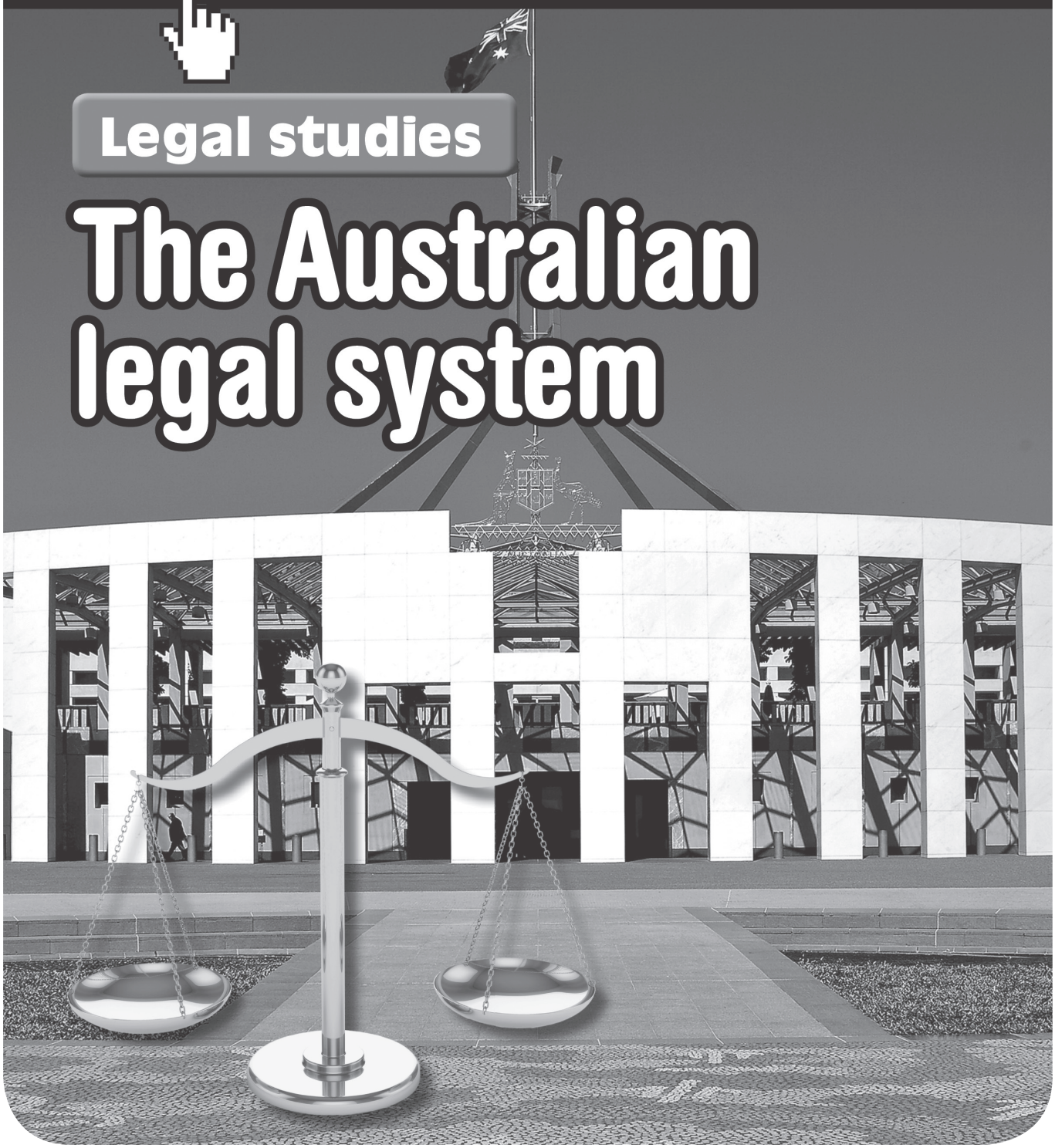

STELLA TARAKSON

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Introduction

The *Interactive Instant Lessons – Legal studies* series is designed to assist students of Legal studies in years 11 and 12. It consists of three titles: *The Australian legal system, Criminal laws and processes* and *Civil laws and processes.* Students are engaged through high-interest fictional scenarios and real-life cases and events that put learning in context and bring the law to life. The series is an ideal supplement to your existing resources, to introduce new topics or for revision and exam preparation.

This book contains work sheets to be photocopied and used as traditional handouts. The work sheets consolidate and extend the content from the onscreen presentations. Some work sheets require Internet access and are marked with a research icon for quick identification. The work sheets are also available in an interactive form on the CD-ROM for laptop classes. You'll find hints for making the best use of the work sheets in the quick-reference guides contained in the folder.

Contents

The need for laws	1	Laws and rules	4
	2	Classification of laws	6
The Australian Constitution	3	Australia's system of government	8
	4	Federal and state powers	10
	5	The separation of powers	12
	6	Changing the Constitution	14
Sources of law	7	Parliament	16
	8	Courts	18
	9	Indigenous customary law	20
	10	International law	22
	11	Law reform	24
Human rights and justice	12	The nature of justice	26
	13	Human rights under international law	28
	14	Human rights in Australia	30
	15	Individuals and the state	32
	16	Disadvantaged groups	34
Resolving disputes	17	The adversarial system	36
	18	The role of the jury	38
	19	Courts and tribunals	40
	20	Appeals	42
	21	Alternatives to court	44
		Selected answers	46

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1 Laws and rules

REMEMBER

Three common types of rules are legal rules (laws), membership rules and social rules. Breaking a rule usually has consequences.

1 **Rules can come under more than one classification. 'Do not lie', for example, can be seen as a social rule as well as a legal rule. Identify three social ramifications of lying.**

2 **Identify two situations where 'do not lie' may amount to a legal rule.**

3 **In each of the situations identified in Question 2, describe the possible legal consequences of breaking the rule.**

Case study: Breaking the rules

Al was not in the mood to go to school today. He'd been having a lot of trouble with some of the smaller kids lately. They used to fear him and scatter as he approached. Then, when his attempt at facial piercing went horribly wrong, the little kids stopped running and started giggling.

Al stomped angrily along the footpath. A group of women walked towards him and stared at his wound. Al picked his nose right in their faces, making the gash look twice the size. He hoped they would say something, but they just looked repulsed and hurried away.

At lunchtime, a Year 7 boy pointed and laughed at Al as he walked by. Al grabbed the kid by the collar, lifted him into the air and threatened to cut him. The boy wriggled madly, then started to howl and cry. Al smiled, satisfied, but then a teacher came over and made him let the kid go.

The principal wanted to search Al's bag. Al refused, even though he suspected he would be given detention for refusing to cooperate. His bag was his property, he said, and the principal had no right to touch it. He was surprised when the principal agreed.

But Al was even more surprised when the police turned up. The officers explained that they had the legal right to search him and his bag on suspicion that he was concealing a knife. Al knew he'd be in trouble when they found the knife, even though he had no intention of actually using it. The knife was confiscated and Al was told he might be charged with a criminal offence.

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4 **a** **Identify an example of a social rule being broken in this fictional case study.**

b **What was the consequence of this social rule being broken?**

c **Did this make Al change his behaviour? Outline reasons for your answer.**

5 **a** **What type of rule was broken when Al frightened the younger child?**

b **Outline the consequences of this rule being broken.**

6 **a** **What type of rule was broken when Al refused to allow the principal to search his bag?**

b **Identify the consequences of Al's behaviour.**

7 **a** **Taking a knife to school is breaking both school rules and legal rules. Identify the consequences of each.**

b **Do teachers have the right to search a student's property against their will? Explain.**

c **Lockers do not belong to the students. Do you think teachers have the right to search lockers against a student's will? Explain your answer.**

8 **a** **In your opinion, *should* teachers have the right to search a student's property against their will? Explain your answer.**

b **In your opinion, should the police have the right to search a student's property against their will? Explain your answer.**

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2 Classification of laws

REMEMBER

The law can be divided into private (or civil) law and public law. There are many subcategories of private and public law.

1 Draw lines to match each of the following legal issues with its classification.

Legal issue	Classification
a theft	contract law
b personal injury	administrative law
c child support	tenancy law
d immigration visa refusal	torts
e validity of legislation	Constitutional law
f manslaughter	family law
g dispute over payment	criminal law
h trespass	employment law
i refusal of social security	
j unfair dismissal	
k eviction	
l breach of warranty	
m workplace discrimination	
n divorce	
o rent increases	

2 Mark true or false for the following questions.

a Laws are divided into categories to make them easier to analyse and study. ☐ True ☐ False

b Laws can be categorised in different ways. ☐ True ☐ False

c Each legal issue can only fit into one category. ☐ True ☐ False

d Criminal law is a type of private law because it involves incidents between individuals. ☐ True ☐ False

3 In your opinion, are all types of laws equally important, or do some matter more than others? Explain your answer.

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4 Unjumble the nonsense words in the following sentences. The first letter of each jumbled word has been given as a clue.

a Classifying the law makes it easier to ysudt it. s_____

b Laws can be divided into public and varipet laws. p_____

c Private law is also often referred to as viilc law. c_____

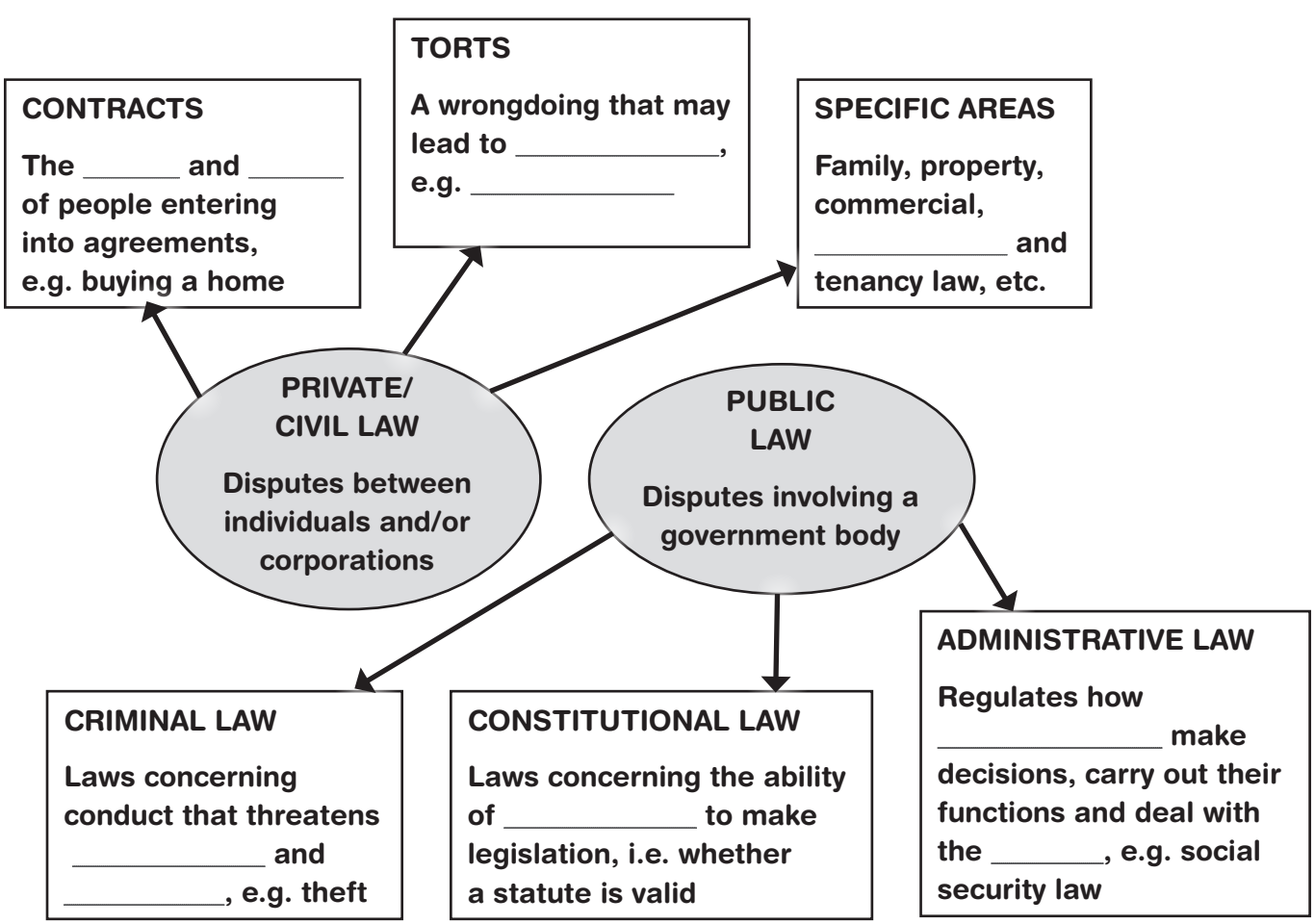
d Public law involves disputes with gmeternovn. g_____

e Administrative law concerns government interaction with the ublipc. p_____

5 Look again at the flow chart that you studied in class. Fill in the gaps using the words in the word bank.

Word bank

parliaments	employment	compensation	rights	wellbeing
negligence	governments	public safety	public	duties



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3 Australia's system of government

REMEMBER

The head of government is the leader of the political party in power. Australia's head of state has mainly ceremonial duties and represents the country internationally.

1 **Mark true or false for the following questions.**

a	**Australia is a constitutional monarchy.**	☐ **True**	☐ **False**
b	**Queen Elizabeth II is the Queen of Australia.**	☐ **True**	☐ **False**
c	**Australia has only one head of government.**	☐ **True**	☐ **False**
d	**All parliaments in Australia are bicameral.**	☐ **True**	☐ **False**
e	**The head of state is the same thing as the head of government.**	☐ **True**	☐ **False**
f	**The Queen appoints and removes her representatives.**	☐ **True**	☐ **False**

Case study: November 1975

Just how powerful is the head of state? For most of the 20th century it was assumed the governor-general had no real power. Little more than a figurehead, the governor-general's duties were traditionally seen as ceremonial. These duties include approving legislation, appointing ministers and dissolving the lower house of parliament at election time. By convention, the governor-general always acted on the advice of the prime minister.

Even so, the governor-general possesses certain powers that can be exercised without the advice of the government. Known as reserve powers, the Queen's representative has the ability to appoint and dismiss a prime minister. Such a tremendous capacity can only be exercised in very limited circumstances, for example, if the prime minister loses the support of parliament in a 'no confidence' vote and then fails to resign.

In November 1975, the Governor-General Sir John Kerr made history by using his reserve powers to dismiss Gough Whitlam's Labor government. The Whitlam government was facing a financial crisis. Although the Labor government had a majority in the lower house, the Liberal Party had a majority in the upper house. The Liberal Party deferred Supply Bills in the upper house, meaning they prevented the government from getting the money it needed to run the country. Sir John Kerr broke the deadlock by dismissing Whitlam from office. Malcolm Fraser, the leader of the opposition, was appointed caretaker (temporary) prime minister and an election was called. The Liberal Party won the election. The Supply Bills were passed.

2 **List the general duties of the governor-general.**

_____

_____

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3 Explain what is meant by the term 'reserve powers'.

4 Who was the governor-general in 1975?

5 In 1975, the Australian Labor Party had a majority in the lower house. Which party had the majority in the upper house?

6 The Senate (upper house) would not pass laws that supplied the government with money. Explain how the governor-general resolved the problem.

7 In your opinion, how should the governor-general have resolved the problem? Explain your answer.

8 Do you think the head of state should have the ability to dismiss a democratically elected head of government? Explain your answer.

9 Use what you have learned in this unit to write definitions for the following terms.

a head of government

b head of state

c bicameral

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4 Federal and state powers

REMEMBER

Lawmaking powers held only by the Commonwealth are called exclusive powers, those held only by the states are called residual powers and shared powers are called concurrent powers.

1 **Draw lines to match each area of law to the correct lawmaking power.**

Area of law	Lawmaking power
a education	
b industrial relations	
c local government	exclusive
d trade and commerce	
e public transport	
f quarantine	concurrent
g taxation	
h currency	
i road laws	residual
j defence	
k customs and excise	
l external affairs	

Case study: *Commonwealth v Tasmania* (1983) 158 CLR 1

At first glance, it appears the states have strong legislative powers. However, there are ways in which federal laws can override these powers. One way comes straight from the Constitution. Section 109 states if there is a clash between a federal and state law, the Commonwealth law will prevail and the inconsistent part of the state law will be invalid.

There are also situations where the Commonwealth may intrude on a state's residual powers and stop the state laws operating. This was shown in the Tasmanian Dams Case.

The Tasmanian government wanted to increase the state's capacity to create electricity. It passed a law allowing the construction of a hydroelectric dam on the Gordon River, which would have flooded part of the Franklin River, an area of great natural beauty. Australia has duties under an international agreement to protect areas that are designated World Heritage Sites. Responding to public outcry, the Commonwealth passed a law preventing construction of the dam.

The Tasmanian government objected, and the case was heard by the High Court. The Commonwealth claimed it could override state laws to comply with Australia's international obligations. It claimed it was given this power over external affairs by the Constitution. A majority of the High Court agreed and the dam was not built.

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2 Where does the rule that federal laws override inconsistent state laws come from?

a Federal law

b State law

c The Constitution

d It is not written anywhere, rather it is convention.

3 In *Commonwealth v Tasmania*, the Tasmanian government wanted to build a dam because:

a it came under the classification of a state's residual powers.

b it was part of their plans for building a new power station.

c it showed they would not bow down to Commonwealth government pressure.

d it disagreed with the Commonwealth's environmental policies.

4 The Commonwealth government passed a law to stop the dam being built because:

a the area had recently been designated a World Heritage Site.

b it wanted to protect the environment.

c public opinion was against the dam.

d All of the above.

5 The Commonwealth succeeded in the High Court by relying on which rule?

a Section 109 of the Constitution

b Environmental matters are an exclusive power

c External affairs may override residual powers

d When federal and state laws clash, federal laws prevail

6 Which do you think is more important – the ability of states to pass laws without interference or the ability of the Commonwealth to ensure compliance with international duties? Explain your answer.

7 Do you think the High Court made the right decision? Explain your answer.

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5 The separation of powers

REMEMBER

In Australia, the separation of powers includes:

- *legislative or lawmaking power (given to parliaments)*
- *executive or administrative power (given to the Queen and her representatives – the governor-general and state governors; in practice, wielded by government ministers and departments)*
- *judicial power (given to courts and tribunals).*

1 **Complete the passage using words from the word bank.**

Because government ministers belong to both parliament and the _____, the legislative and executive functions are _____. This is the result of another important legal _____, that of responsible government. The executive government comes from within _____, and the executive is _____ to parliament. Australia derived this system from the British, and it is known as the _____ system. Checks and balances still exist. Ministers are constantly _____ by other members of parliament, especially members of the _____. Having a two-house or _____ system also provides balance, as the government may not have a majority in _____ houses of parliament.

Word bank

responsible
linked
scrutinised
bicameral
executive
opposition
doctrine
parliament
both
Westminster

Case study: The power to remove judges

The independence of the judiciary is the most important aspect of the separation of powers. Judges cannot be members of either the executive or legislative arms of government. Neither can they be controlled or directed by these arms.

But the executive chooses and appoints judges. Governments might select judges that have similar values and opinions as their own members. Indeed, several judges were once members of parliament. Governments come and go, however, and the judges may continue to preside throughout many changes of government.

A greater danger would exist if the executive had the power to dismiss judges if they disagreed with their judgements. Is this actually the case? Section 72 of the Australian Constitution gives the executive the power to remove judges for 'proved misbehaviour or incapacity'. This nearly happened to a High Court judge.

Justice Lionel Murphy was a radical and outspoken judge who was responsible for many reforms. He had once been a member of parliament and he served as attorney-general for the federal Labor government in the 1970s.

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In the mid-1980s, Murphy was accused of attempting to pervert the course of justice – more specifically, to influence a court case in favour of someone he called his 'little mate'. He was eventually found not guilty, and he praised the jury system. His radical judgements, however, had upset the conservative factions of the government. Moves were made to remove Murphy for misbehaviour by passing a law through parliament.

Sadly Murphy was diagnosed with incurable cancer. The action was dropped. The ability of the Commonwealth Parliament to remove a High Court judge has not been finally determined.

2 **The separation of powers doctrine protects the rights and freedoms of the individual. Outline how it does this.**

3 **Outline what might happen if one body or person controlled all three functions of government.**

4 **Explain what dangers might exist if the judiciary was influenced or controlled by the executive.**

5 **Section 72 of the Constitution refers to 'proved misbehaviour or incapacity' of the judge. Explain what you think this might refer to.**

6 **In your opinion, what sort of conduct should amount to misbehaviour? Should it cover issues not directly related to a judge's work, such as having an extramarital affair? Or should it be interpreted more restrictively? If so, how?**

7 **a** **Why do you think Murphy praised the jury system?**

b **Outline the safeguards that the jury system provides.**

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6 Changing the Constitution

REMEMBER

The Australian Constitution is a set of principles and laws that describe the law-making powers of parliament. Changing the Constitution is very difficult. It requires a referendum, which is a nationwide vote on the proposed change.

- *A proposed amendment must be passed by an absolute majority in both houses of parliament.*
- *A referendum must be approved by a majority of voters in a majority of states. This is called a double majority.*

1 **The table below lists some of the proposed changes to the Australian Constitution. Use the Internet to identify whether each proposal was accepted or rejected. Conduct an Internet search for 'Australian Parliamentary Handbook on Referendums and Plebiscites' and follow the link to the Parliament of Australia website.**

Year of referendum	Proposal	Accepted or rejected?
1913	Extend the Commonwealth's power to make laws regarding industrial matters	
1926	Grant the Commonwealth power to protect the public from interruption to essential services	
1937	Grant the Commonwealth power to make laws regarding air navigation and aircraft	
1946	Grant the Commonwealth power to provide greater range of social security benefits and services	
1951	Approval for the Commonwealth to ban the Communist Party of Australia	
1967	To change the way Aboriginal people were referred to in the Constitution and allow for their inclusion in census	
1977	Provide retirement age for judges of federal courts	
1988	To recognise local government in the constitution	
1999	To change the head of state, making Australia a republic	

2 **You will notice from the table that many of the referenda attempted to give the Commonwealth the power to make laws on various matters. Why is a Constitutional amendment needed to do this?**

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3 **Identify another way that the Commonwealth can increase the various matters for which it can pass laws.**

4 **Explain the rationale behind the double majority rule.**

5 **In your opinion, why do most attempts to change the Constitution fail?**

6 **Using the Internet, look up the failed proposed preamble from the referendum in 1999. Visit the website of the federal Department of Education, Employment and Workplace Relations at http://www.curriculum.edu.au/cce/default.asp?id=9546, under the heading 'The 1999 referendum'. List the key elements of the proposed preamble.**

7 **Form small groups. Discuss what you think should be in the preamble, then draft your own version in the space below.**

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7 Parliament

REMEMBER

Laws made by parliament are known as Acts, statutes or legislation. A proposed law is called a Bill. For a Bill to become law, it must be passed by parliament.

1 **Most Bills are introduced into the lower house by the relevant minister. This means that a Bill:**

- **a** **is likely to pass there because the government has a majority.**
- **b** **is likely to pass there because the opposition has a majority.**
- **c** **is unlikely to pass there because the government has a majority.**
- **d** **is unlikely to pass there because the opposition has a majority.**

2 **How many times is a Bill read in the lower house before it can be approved?**

- **a** **One**
- **b** **Two**
- **c** **Three**
- **d** **As many times as necessary**

3 **For a Bill to become law in a bicameral (two-house) parliamentary system:**

- **a** **both houses need to approve the Bill.**
- **b** **only the lower house needs to approve the Bill.**
- **c** **only the upper house needs to approve the Bill.**
- **d** **only the governor or governor-general's consent is required.**

4 **An Act commences formal operation:**

- **a** **on the date it receives royal assent.**
- **b** **on a day to be proclaimed in the *Government Gazette* (a government publication).**
- **c** **retrospectively (before royal assent) if this is specified in the legislation.**
- **d** **Any of the above may be correct.**

Case study: Forming a minority government

Usually there is a clear winner following an election. But in the 2010 federal election, neither of the major parties secured enough seats in parliament to govern in their own right.

The House of Representatives is composed of 150 members. For a party to gain an outright majority they need to win at least 76 seats. This did not happen. The result is known as a hung parliament. A hung parliament means no party can pass laws without the support of other parties and/or the independents.

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This is not unprecedented in Australia. Hung state parliaments occur occasionally, but the only other time there was a hung federal parliament was in 1940, after the outbreak of World War II.

The seats won in the 2010 federal election were: Labor Party 72, Liberal Party 44, Liberal National Party of Queensland 21, National Party 7, Independents 4, Country Liberal Party 1, Greens Party 1.

Both Labor and the Coalition (the Liberal Party, Liberal National Party of Queensland and the National Party) tried to gain the support of others in order to create a minority government. In the meantime, Julia Gillard, who was prime minister prior to the election, continued as caretaker prime minister until the issue could be resolved. If the issue had been unable to be resolved, another election may have been held. That was unnecessary, however, and Gillard's Labor Party was able to form a minority government.

5 **a** **What is the term used to describe two or more parties who join together to form a government?**

b **Which two Australian political parties typically do this when in power?**

6 **The independents were able to determine the government by choosing which of the major parties to side with. In your opinion, is this a threat to the concept of democracy or a necessary part of the democratic process? Outline your reasoning.**

7 **A ruling government can pass legislation because it can claim to have the mandate of the voters. Do you think this still applies in the case of a minority government? Explain your answer.**

8 **Use what you have learned in this unit to write definitions for the following terms.**

a **Bill**

b **delegated legislation**

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8 Courts

REMEMBER

Judges can make laws, as well as interpret and apply laws. Court-made law is called common law. Judges traditionally interpret statutes according to the literal rule, mischief rule, golden rule and other language rules.

1 **Explain the two ways that courts can make common law.**

_____

_____

_____

_____

Case study: *Donoghue v Stevenson* [1932] AC562

The law of negligence is the classic example of common law evolving where no statutory law existed. In the past it was not possible for the victim of another person's carelessness to sue if there was no contract between them. Gradually, however, courts started finding liability.

In *Donoghue v Stevenson*, an unfortunate woman drank a bottle of ginger beer, only to find the remains of a decomposed snail in the bottle. She suffered gastroenteritis and severe shock. She had no contract with the ginger beer manufacturer, but the court was prepared to say the manufacturer owed her a duty of care. This was the start of a whole new area of law, and there is now comprehensive legislation that deals with negligence.

2 **Complete the passage using words from the word bank.**

Bit by bit the common law develops, revolving around the doctrine of _____. This holds that once a case has been decided, a _____ has been created that should be applied to future _____ cases. For people to be treated fairly, similar _____ should be decided in a similar manner. Precedent is largely determined by the court _____, which is the ranking of courts in order of _____. Courts lower on the hierarchy are bound to follow the decisions of the _____ courts, but not the other way around. Courts are usually not _____ to follow their own _____ decisions, but may do so unless there is good reason not to. Decisions of courts from other legal systems are not binding, but may be followed if the court considers them to be _____.

Word bank

bound
similar
cases
persuasive
importance
prior
guide
hierarchy
higher
precedent

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3 **Unjumble the nonsense words in the following sentences. The first letter of each jumbled word has been provided as a clue.**

a **Common law can be created where there are gaps in sllegiaotin.** l_____

b **Rules have been developed to help courts rpetinter statutes.** i_____

c **The literal rule gives words their taunarl meaning.** n_____

d **Negligence is an example of common law evolving where no tuesstat existed.** s_____

e **The famous case creating a new area of law is *Donoghue v nSvsteeon*** S_____

f **Courts rely on the doctrine of ceeprdent when deciding cases.** p_____

g **Whether courts have to follow previous cases depends on the deciding court's position in the court erahchiry.** h_____

4 **a** **Explain the doctrine of precedent in your own words.**

_____

_____

_____

b **Identify whether a court in Queensland is obliged to follow the ruling of a higher court in Queensland. Give reasons for your answer.**

_____

_____

c **Identify whether a court in New South Wales is obliged to follow the ruling of a higher court in Victoria. Give reasons for your answer.**

_____

_____

d **Identify whether a court in Western Australia is obliged to follow the ruling of a lower court in Western Australia. Give reasons for your answer.**

_____

_____

e **Identify whether a court in South Australia is obliged to follow the ruling of the High Court. Give reasons for your answer.**

_____

_____

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9 Indigenous customary law

REMEMBER

Customary laws are social rules given the status of law due to long usage. Although unwritten, customary law is traditionally considered binding by Aboriginal Australians.

1 **Complete the passage using words from the word bank.**

From the early days of settlement, it was presumed that Indigenous Australians should be subject to _____ law. It was not until much later that applying mainstream law to crimes committed in _____ communities was questioned. Some courts were able to consider _____ laws when passing criminal sentences. In other words, the fact that traditional _____ would be imposed could be reflected in the sentence. Even now, however, there is very little _____ of customary law. Much of it comes down to the issue of sovereignty, or the _____ to pass laws. In the High Court case *Walker v New South Wales* (1994) 182 CLR 45, it was stressed that _____ has the power to pass laws affecting Indigenous Australians. The judgement also stated that mainstream laws apply to Aboriginal people even without their _____ or consent.

Word bank

parliament
punishment
British
request
recognition
Indigenous
power
customary

Case study: Customary law

Bill lived in a remote Aboriginal community. One night, Bill and his friend Jack had a few drinks together. A disagreement sprang up concerning Bill's ex-girlfriend, now Jack's wife. The men started to fight. The situation escalated and Bill broke Jack's nose.

The tribal elders applied their customary laws and decided the appropriate punishment was retribution. Jack was instructed to spear Bill in the thigh. Jack was nervous and misjudged his aim. He hit an artery, causing severe bleeding. Bill nearly bled to death but recovered after receiving emergency medical treatment.

Jack did not intend to cause such a serious injury. He was arrested by the police and charged with attempted murder.

2 **Read the fictional case study. In your opinion, should Jack have carried out his elders' ruling? Explain your answer.**

_____

_____

3 **In your opinion, should Jack have been charged for following the ruling imposed on him by his customary laws?**

_____

_____

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4 **Conduct a class debate around the statement 'Laws should apply to all Australians equally, regardless of individual circumstances'. Use the space below to prepare your notes.**

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10 International law

REMEMBER

International law develops through international treaties, conventions and other types of agreements. A country can become a signatory to a treaty or convention, but an international law only operates in that country if the country ratifies the agreement and passes legislation to implement it.

1 **'Ratify' means 'confirm the signature of the agreement, indicating willingness to be bound'. In your own words, explain what this means.**

_____

_____

2 **Unjumble the nonsense words to identify some of the treaties that Australia has ratified. The first letter of each jumbled word has been given as a clue.**

a **Convention on ogiclaloiB Diversity** **B**_____

b **International arSgu Agreement** **S**_____

c **Convention on clarNue Safety** **N**_____

d **Pacific Agreement on Closer nicmoocE Relations** **E**_____

e **Convention on the hsRitg of the Child** **R**_____

f **United Nations Convention Against putionrroC** **C**_____

Case study: Northern Territory Emergency Response (NTER)

Australia ratified the International Convention on the Elimination of all Forms of Racial Discrimination and then passed the *Racial Discrimination Act 1975* (Cth).

When a nation ratifies the convention, it agrees to various undertakings, including:

- not to engage in actions of racial discrimination
- not to sponsor or support racial discrimination by any person or body
- to review government policies that are discriminatory and to amend the law
- to prohibit racial discrimination, hatred and violence
- to ensure remedies for victims of racial discrimination
- to combat prejudices through education.

Has Australia fulfilled its obligations? A report on child abuse in Indigenous Australian communities in 2007 led to an intervention by the Howard government. Called the Northern Territory Emergency Response (NTER), the action sparked indignation throughout the international community.

The goals of the NTER were to protect women and children by increasing the presence of police in the relevant communities and restricting alcohol. Welfare quarantining was

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also introduced. This meant that half of a recipient's welfare payment was replaced with vouchers that could only be spent on food and clothing. The action was applied to all Indigenous people living in the affected communities, not just the ones shown to be abusive or neglectful. Many commentators saw this as a breach of Australia's international obligations regarding racial discrimination.

3 **The International Convention on the Elimination of all forms of Racial Discrimination requires nations to:**

- **a** **review government policies that are discriminatory.**
- **b** **prohibit racial discrimination, hatred and violence.**
- **c** **provide remedies for victims of racial discrimination.**
- **d** **All of the above.**

4 **According to the case study, questions were raised over whether Australia was fulfilling its international obligations because:**

- **a** **it did not ratify the International Convention on the Elimination of all forms of Racial Discrimination.**
- **b** **it ratified the convention but did not pass any laws to give effect to it.**
- **c** **the NTER was discriminatory because it applied only to Indigenous Australians.**
- **d** **the NTER was discriminatory because it protected women and children only.**

5 **The NTER's stated goals were to protect women and children by:**

- **a** **restricting alcohol.**
- **b** **increasing police presence in the communities.**
- **c** **quarantining welfare payments.**
- **d** **All of the above.**

6 **Welfare quarantining involved:**

- **a** **directing how welfare money should be spent.**
- **b** **replacing half of the welfare payment with vouchers that could only be spent on food and clothing.**
- **c** **suspending welfare for a set period of time.**
- **d** **cancelling welfare indefinitely.**

7 **Welfare quarantining was applied to:**

- **a** **everyone living in the affected communities, regardless of race.**
- **b** **all Aboriginal Australians living in the affected communities.**
- **c** **only parents shown to be negligent.**
- **d** **individuals on a case-by-case basis.**

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11 Law reform

REMEMBER

Laws need to change and develop to keep up with society's changing attitudes. Calls for change can come from political parties, pressure groups or other organisations, and judges.

The following newspaper article is fictional. While reading it, keep in mind that the ability to legislate regarding law and order is a residual state power.

Teenage curfew causes chaos

27 February 2017, Australia **GKG Press**

Mass demonstrations and riots have broken out in response to a proposed curfew. Teenagers across the country have taken to the streets in a show of unity, waving placards and shouting slogans.

The spark that ignited the flame is a proposed law by the new federal government, which plans to impose an 11pm curfew on everyone under the age of 20. If passed, any teenagers found in public after 11pm will be arrested and held in overnight cells. Parents will be charged a $500 'holding fee' per night of incarceration.

'This is the only way to stop teenage drinking and violence', said Siobhan State, the Minister of the newly created Commonwealth Department of Criminal Prevention. 'Children have been given too much freedom in the past, and they have all turned into drug-taking, body-piercing, handbag-snatching, tattooed criminals.'

Violence has erupted in most major cities as students express their disbelief and fury, but in each case protest has been met with strong-arm tactics by the law. Many young people have been hospitalised. Some commentators suggest it is only a matter of time before there is a fatality.

'This is unacceptable', said Jon Smyth, professor of law. 'It is an abrogation of young people's fundamental rights and a denial of human liberty. My colleagues and I are taking immediate action by writing a paper questioning the constitutional validity of the proposed law. A complaint to the United Nations Human Rights Committee is also being considered.'

'That's exactly the attitude I'd expect', responded Ms State. 'I blame the parents and the educational institutions for putting such ideas into young people's heads. It's time someone takes a stand for law and order, and this new government will not shy away from that responsibility.'

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1 **Use the space below to write a letter of complaint to your federal member of parliament, opposing the proposed curfew. You can refer to constitutional validity (especially as crime is a residual state matter), human rights issues and any other matters that may help your case.**

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12 The nature of justice

REMEMBER

Justice is hard to define, but a just law or judgement should have the characteristics of equality, fairness and access. Openness is essential for carrying out justice.

1 **Explain why is it so important that justice is seen to be done.**

Case study: Equality of treatment

Four people are caught speeding along the same busy road at the same time. They are travelling through a school zone, with a 40 km/h speed limit. The limit when the school zone is not in operation is 70 km/h. Each driver is clocked travelling at 69 km/h while the school zone is in operation and each is fined the same sum.

Rachel, 28, is a single mother. She has never been booked before. She is picking up her six-year-old son from school but is running late because a work meeting ran over time. She is frantic because her ex-husband made a few attempts in the past to pick up their child without authority. Rachel is worried her ex might try to abduct their son if she is not there in time.

Jason, 44, has been booked for speeding on several occasions, and has had his licence suspended more than once. He is a busy executive whose motto is 'Time is money'. He often risks speeding fines, seeing them merely as a cost of business. For him, it is cheaper to pay the occasional fine than to lose money by spending more time on the road.

Ellie, 17, just received her provisional licence. It is the first time she is driving alone. She is excited but also nervous. Her mobile phone starts to ring but she ignores it. The distraction was enough, however, for her to not notice the school zone sign. Ellie is a high school student living with her parents. She has no income of her own.

Alfred, 79, has been driving for more than 60 years and has a perfect record. He has just learnt his wife is suffering from terminal cancer and has a few months left to live. He cannot concentrate on anything else. Alfred is on the age pension and is unsure if he can afford to give his wife a decent funeral.

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Does equality of treatment lead to equal outcomes? Consider the fictional case study on the facing page, then divide into small groups to answer the questions below.

2 **In your opinion, should each driver receive the same penalty for committing the same offence – and for creating the same risk to the community? Explain your reasoning.**

3 **Some of the issues that distinguish the offenders include driving record and driving experience. Do you think these should be taken into account? If so, who should receive the harshest penalty?**

4 **Another issue that distinguishes the offenders is financial position. A $200 fine would be much harder for Alfred to bear than Jason, for instance. Do you think their financial circumstances should be taken into account? Why or why not?**

5 **Should the drivers' state of mind at the time of the offence be taken into account, or should it make no difference to the penalty? How would your answer differ if one of the drivers was intoxicated?**

6 **Nobody was hurt in the scenario. Assume now that a young child was knocked down and critically injured by one of the speeding drivers. Would your answers to the above questions stay the same? If not, how would they change?**

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13 Human rights under international law

REMEMBER

Much of the law relating to human rights has been developed in the international arena. The Universal Declaration of Human Rights of 1948 has become the basis of many international agreements, treaties and conventions.

1 **Using the Internet, complete the table below by looking up the year in which the human rights international agreements came into force. Also list three participants of each agreement. Visit the website of the United Nations Treaty Collection at http://treaties.un.org and do a 'title search' of the UNTS Database.**

Name of agreement	Entered into force	Three participants
International Covenant on Civil and Political Rights		
Convention of the Rights of the Child		
Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment		
International Convention on the Elimination of all forms of Racial Discrimination		
International Covenant on Economic, Social and Cultural Rights		

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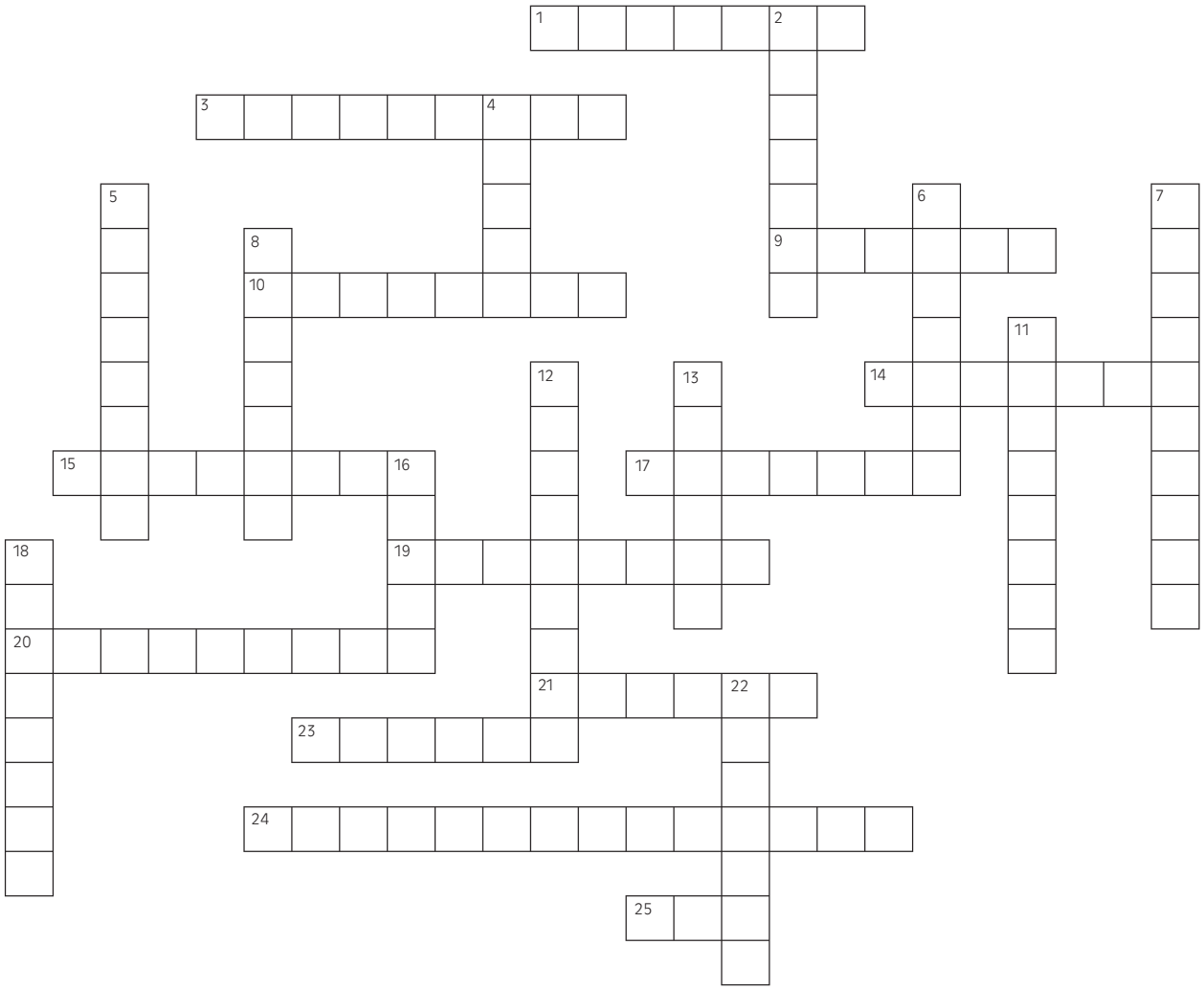
Human rights crossword

2 Use your knowledge of the law to complete the crossword.



ACROSS

1 Another word for shelter (7)

3 The separation of people on the basis of race (9)

9 Shelter and protection for refugees (6)

10 Everyone is presumed to be this until proved guilty (8)

14 Person fleeing their country due to war, persecution or natural disaster (7)

15 Unlike natural law, this type of law is created by people and their legal systems (8)

17 This right refers to being free from intrusion or public exposure (7)

19 Joining together to protect the rights of workers (8)

20 Court hearings should be this, meaning independent or unbiased (9)

21 According to natural law, these exist simply because we are human (6)

23 Agreement between two or more nations (6)

24 Treating people differently on the basis of their sex, race, religion, etc. (14)

25 Peace rights refer to living in a world where this event is removed or reduced (3)

DOWN

2 Peace rights involve the reduction of these weapons of mass destruction (7)

4 Voluntary or enforced removal from one's own country (5)

5 The freedom of this allows worship without interference (8)

6 Forced or compulsory labour (7)

7 Often also called a treaty, this type of agreement has a wide number of participants (10)

8 Another word for freedom (7)

11 The right to vote in elections (8)

12 A type of law arising through widespread usage (9)

13 Take into police custody (6)

16 All people are considered to be this before the law (5)

18 These young people are the most vulnerable and in need of protection (8)

22 Inflicting severe physical pain as punishment or coercion (7)

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14 Human rights in Australia

REMEMBER

There is currently no national Bill of Rights in Australia. Some argue it is unnecessary, as the Australian Constitution explicitly protects some human rights, but others argue that it is needed.

1 **Complete the passage using words from the word bank.**

The English parliament passed a Bill of _____ in 1689. Its long title was *An Act Declaring the Rights and _____ of the Subject and Settling the Succession of the Crown*. It is an important part of English legal history as it limits the powers of the _____ and gives certain powers to parliament. For instance, it provided for regular _____ and for freedom of _____ within parliament.

The United States also has a Bill of Rights. It is the name given to the first ten _____ to the United States Constitution. It limits the power of the government to pass laws that _____ various rights. These rights include freedom of the _____ and the right to bear arms.

Word bank

infringe
speech
Rights
monarchy
Liberties
amendments
press
elections

Case study: Human rights in the Constitution

High Court judges are sometimes prepared to find that human rights are implied in the Australian Constitution. An example is the landmark case of *Australian Capital Television v Commonwealth* (1992) 177 CLR 106.

The case arose due to a challenge to the *Political Broadcasts and Political Disclosures Act 1991* (Cth). The Act banned the broadcast of political material leading up to an election. A majority of the High Court held that the Act infringed an implied right in the Constitution. Sections 7 and 24 of the Constitution provide for the election of senators and members of the House of Representatives. This, as well as the system of representative government created by the Constitution, was held to mean that Australians should be able to freely discuss political matters. In other words, there is an implied freedom of political discussion and communication in Australia. The Act in question infringed this right, and so the ban was declared to be invalid.

Later High Court cases widened and extended the scope of this implied right. However, more recent High Court cases restricted it again. The implied right still exists, but its scope keeps changing.

2 **Are you personally for or against an Australian Bill or Charter of Rights? Give reasons.**

_____

_____

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3 **Discuss whether the High Court's ability to imply rights in the Constitution provides enough protection for human rights in Australia.**

4 **Assume that a national Bill or Charter of Rights is going to be passed in Australia. It could be a set of guidelines that might not be compulsory, but nevertheless exerts political pressure on any future government that tries to water down the rights. Alternatively, it could take the form of Commonwealth legislation or an amendment to the Constitution.**

a Commonwealth legislation

i How would the legislation be made?

ii How could the legislation be changed in the future?

iii What may happen if the legislation is not followed?

b An amendment to the Constitution of Australia

i How would the amendment be made?

ii How could the new constitutional provisions be changed in the future?

iii What might happen if the new constitutional provisions were breached by future governments when passing legislation?

5 **Which approach outlined in Question 4 do you think would be the most effective? Give reasons for your answer.**

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15 Individuals and the state

REMEMBER

Often individuals are unhappy with government decisions that affect them. They may seek a merits review (a reconsideration of the decision), or they may seek a judicial review (a review of the legality of the decision).

1 **The table below identifies some possible ways that members of the public can challenge government decisions. Formal methods follow prescribed procedures, while informal methods rely on persuasion. Complete the table. The first two rows have been completed for you as a guide.**

Avenue	Formal or informal	How it works
Media	Informal	Bad publicity exerts political pressure on government
Courts	Formal	Seeking judicial review if decision was *ultra vires* (breached natural justice)
Complaint to MP		
Original decision-maker		
Gaining support of interest group (e.g. group that supports asylum seekers)		
External body or tribunal (e.g. Administrative Appeals Tribunal)		
Complaint to ombudsman		
Gaining support of a trade union		

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The Administrative Appeals Tribunal

The Administrative Appeals Tribunal (AAT) reviews decisions made by federal ministers, government departments and agencies. It is independent of the body that made the original decision, and has the power to consider the case on its merits. Visit its website at http://www.aat.gov.au/ApplyingForAReview/WhenCanTheAATHelp.htm, then answer the following questions.

2 **Identify five matters that the AAT can review.**

3 **Identify two bodies whose decisions the AAT cannot review.**

4 **What is the time limit for applications for review?**

5 **Explain what steps a person could take if the time limit has elapsed, yet they want to apply for review.**

6 **In your own words, outline the steps taken in a review.**

7 **Use what you have learned in this unit to explain the differences between a merits review and a judicial review.**

8 **What is an *ultra vires* decision?**

9 **In your own words, explain natural justice.**

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16 Disadvantaged groups

REMEMBER

Discrimination is the unfair treatment of a person due to their membership of a certain group. The law tries to address imbalances and place people on a more equal footing.

1 **Identify possible situations where the individuals in the following groups might be facing discrimination. *Hint*: Consider matters such as applying for a job, getting a promotion, renting a home, joining social clubs, being served in shops and restaurants, etc.**

a **Aboriginal Australians**

b **People with a physical disability**

c **The elderly**

d **Homosexuals**

e **People with a mental illness**

f **Migrants**

g **Parents of young children**

h **People of low socioeconomic status**

i **Women**

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j Youth

_____

_____

Case study: Discrimination in the workplace

Ms Evans was an intelligence analyst with the National Crime Authority. She was a single mother and had to take a considerable amount of carer's leave to look after her sick child. She was reprimanded even though she did not exceed her entitlements. Allegedly her manager said, 'You hold a key position and someone like you has to be there 100 per cent' and 'If I had known of your situation I would never have hired you'. Evans was put under pressure to not take carer's leave, was moved to a different team, and her contract was not renewed.

Section 14(2) of the *Sex Discrimination Act 1984* (Cth) states that:

> It is unlawful for an employer to discriminate against an employee on the ground of the employee's sex, marital status, pregnancy or potential pregnancy:
>
> (a) in the terms or conditions of employment that the employer affords the employee;
>
> (b) by denying the employee access, or limiting the employee's access, to opportunities for promotion, transfer or training, or to any other benefits associated with employment;
>
> (c) by dismissing the employee; or
>
> (d) by subjecting the employee to any other detriment.

The case went before the Federal Magistrates Court, where the magistrate agreed the employer breached the Act: *Evans v National Crime Authority* [2003] FMCA 375. He found that Evans was dismissed and discriminated against on the grounds of parental responsibility.

Answer the following questions in your workbook.

2 Outline Ms Evan's complaint in this case.

3 Do you think the alleged statements by her manager amounted to unfair discrimination? Why or why not?

4 What other information would you like to have before reaching a conclusion as to whether the Act was breached?

5 Using your Legal studies textbook or the Internet, write definitions for the following terms.

a reverse discrimination

b affirmative action

6 Do you agree with the principles of affirmative action? Why or why not?

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17 The adversarial system

REMEMBER

In an adversarial court system, parties are adversaries or opponents and test each other's evidence. In an inquisitorial court system, a judge acts as an investigator or inquisitor.

1 **For each statement in the table, mark true or false, then write the correct statement.**

Statement	True or false?	Correct statement
a Courts in Europe commonly use the adversarial system		
b Judges in the inquisitorial system ask questions to determine the truth		
c A person commencing criminal proceedings is known as the plaintiff		
d The burden of proof usually rests with the person bringing the action		
e The standard of proof is the same in civil and criminal cases		
f A plaintiff needs to prove their case on the balance of probabilities		
g The defendant needs to prove their case beyond reasonable doubt		
h If a criminal case is not proved beyond reasonable doubt, the defendant may be acquitted		

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Case study: Equity and the law

The British adversarial system saw the development of the common law courts. Historically, these courts required a rigid adherence to the rules of evidence and procedure. This often led to injustices and harsh decisions. Medieval litigants (people involved in lawsuits) were able to petition the king to 'do equity' for them – that is, to ensure fairness and justice. Equity eventually evolved into a body of law that ran parallel to the common law and relieved some of its harshness. For example, it protects weak parties when they are taken advantage of by stronger parties.

The High Court case *Blomley v Ryan* (1956) 99 CLR 362 involved the sale of a farm for a very low price by an intoxicated elderly man. The buyer knew of the old man's drinking spree and even brought a bottle of rum to the negotiations. The High Court held that because the buyer took advantage of the seller's condition, equity would not allow specific performance. In other words, the party taking advantage of the weaker party cannot insist the contract be performed. The court described other factors and vulnerabilities that could lead to a similar result, including poverty, illness and illiteracy.

The law of equity contains various maxims, or guiding principles. These are not binding rules. Instead, they reflect equity's flexible approach to providing remedies.

2 Draw lines to match the maxim with its meaning.

Maxim	Meaning
a He who comes to equity must come with clean hands	**i** Equity considers the parties' intentions, not just their actions
b Where the equities are equal the common law prevails	**ii** Someone seeking equity must have acted fairly
c Equity looks to substance not form	**iii** Delaying seeking a remedy might make it unavailable
d Equity will not suffer a wrong to be without a remedy	**iv** Where both sides acted fairly the common law will apply
e Delay defeats equity	**v** A plaintiff who deserves a remedy will get it

3 The law of trusts is an example of the development of equity. A trust exists when someone cannot hold property on their own behalf, for instance, children and people with some mental illnesses. They are known as beneficiaries. The property is held on the person's behalf by a trustee, who must always act in the beneficiary's interests.

Unjumble the nonsense words. The first letter of each word is shown as a clue.

a A trust exists where someone holds property on behalf of <u>othrena</u>. a_____

b Children are too young to own certain <u>setssa</u> in their own names. a_____

c If a child inherits an asset it will be held in <u>surtt</u> for him or her. t_____

d When the child is old enough, he or she will take <u>galle</u> ownership. l_____

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18 The role of the jury

REMEMBER

Trial by jury is one of the most important safeguards in the Australian legal system. Jury members are chosen at random, representing the impartiality and common sense of society. Some courts and states require unanimous verdicts; others require majority verdicts. A unanimous verdict is one that every member of a jury agrees on. A majority verdict is one that a majority – but not all – of a jury agrees on.

1 **Mark true or false for the following questions.**

a	**A unanimous verdict is one that all jurors agree on.**	☐ **True**	☐ **False**
b	**The deliberations of a jury are secret.**	☐ **True**	☐ **False**
c	**Judges can tell a jury what verdict they must reach.**	☐ **True**	☐ **False**
d	**Juries have to give reasons for their verdicts.**	☐ **True**	☐ **False**
e	**Juries can disregard the law and make their decision based on what they think is fair.**	☐ **True**	☐ **False**

2 **Read the following fictional case studies. Each contains something that either could not or should not happen in an Australian courtroom. Identify the mistake.**

Case study 1

Raymond was charged with aggravated assault causing harm. His case was heard by a judge and jury. The jury returned a verdict of guilty. The jury then proceeded to sentence Raymond to six years' imprisonment.

_____

_____

Case study 2

When summing up in a murder trial, the judge said, 'The evidence against the accused is overwhelming. It cannot possibly be interpreted in the manner suggested by the defendant. I hereby direct you to return a verdict of guilty.'

_____

_____

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Case study 3

A world-famous hip hop star was accused of murdering his girlfriend. Despite the strong evidence, the jury found him not guilty. It was an 11:1 majority verdict, which was acceptable in that state. After the trial, the dissenting juror attended a press conference. He expressed the opinion that the musician 'is guilty but the others let him off because he's famous'.

3 **Questions of fact seek to establish what actually happened. Questions of law try to determine legal rules or principles. Read the following sets of questions. Decide which in each set is a question of fact and which is a question of law. Write the question number in the appropriate space in the table.**

a i Was the accused present when the woman committed suicide?

ii Does the mere presence of the accused during a suicide amount to the crime of assisted suicide?

b i Does the failure to seek medical treatment for a fatally injured toddler amount to manslaughter?

ii Did the toddler's parents fail to seek medical treatment following the child's injury?

c i Was the baby stillborn due to oxygen deprivation during the birth?

ii Was the obstetrician negligent in not treating the problem causing oxygen deprivation during the birth?

d i Did the accused know what he was doing when he attacked his friend?

ii Did the accused's inability to know what he was doing amount to insanity at law?

Questions of fact	Questions of law

4 **A hung jury exists where not all jurors can agree on the verdict. If a unanimous decision is needed, this could require the jury to be dismissed and a retrial ordered. In your opinion, which is better: a retrial or allowing a majority verdict to stand? Give reasons for your answer.**

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19 Courts and tribunals

REMEMBER

Australian courts operate under a hierarchy. A court's jurisdiction refers to the power it has to hear a particular case and make a binding resolution.

1 Mark the right answer for each. In your state or territory, do you have:

a Local or Magistrates courts?

b District or County courts?

2 Name another court that sits at the same level as the Local or Magistrates courts in the state system. _____

3 Identify which court a person would go to if they wanted to recover a small debt. _____

4 Identify which court would hear a murder case. _____

5 Identify which courts hear bankruptcy proceedings. _____

Tribunals

Tribunals are specialist bodies set up by legislation to deal with particular types of disputes. They exist at both the state and federal levels and operate alongside the courts. There are too many to list, but some examples include the New South Wales Consumer, Trader and Tenancy Tribunal, the Victorian Civil and Administration Tribunal and the federal Administrative Appeals Tribunal.

6 Complete the passage using words from the word bank.

Word bank			
expensive	formal	hearsay	members
evidence	binding	quicker	representation

Tribunal hearings are less _____ than court proceedings, both in procedures and in physical appearance. The strict rules of _____ may not apply, allowing the tribunal to consider matters that might not be admissible in court. For example, _____ evidence might be permitted. Legal _____ may be restricted or prohibited in some tribunals, and applicants often represent themselves. Tribunal hearings aim to be _____ than court proceedings, which often suffer from delays. They also tend to be less _____. The people who hear tribunal cases are known as tribunal _____. Tribunal decisions are legally _____.

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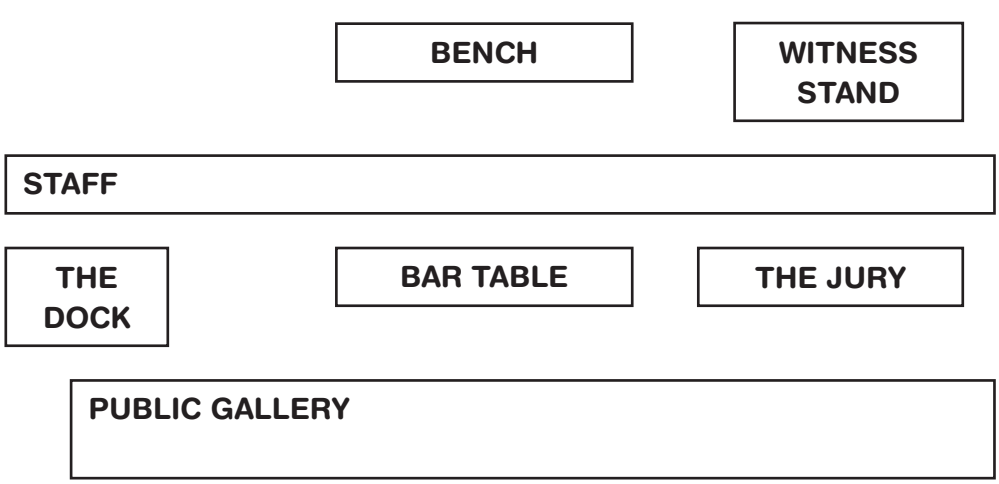
7 Do the following statements apply to courts or tribunals? Draw lines to link the correct matches.

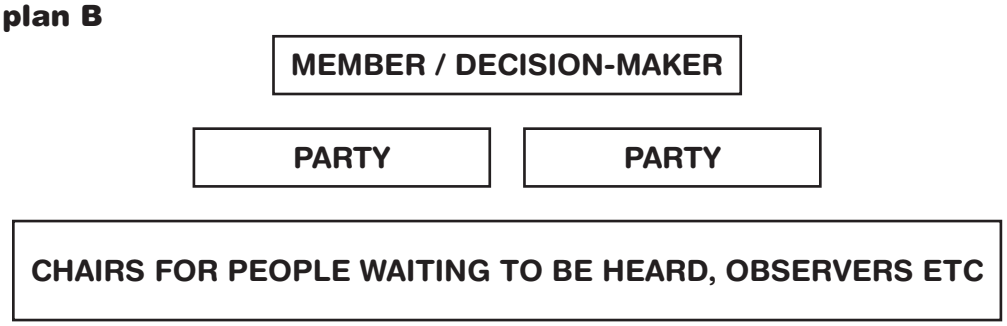
Statement	Type of body
a Strict rules of evidence apply	Courts
b Less formal physical appearance	
c Delays more common	
d Legal representation may be restricted	
e Proceedings relatively informal	Tribunals
f Less expensive	
g Bound by the doctrine of precedent	
h Often specialise in a particular area	

8 Below are two floor plans – one is that of a courtroom, the other is a tribunal. Which do you think is which? Give reasons for your answer.

Floor plan A



Floor plan B



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20 Appeals

REMEMBER

An appeal is an application to a higher court by a party who believes that a lower court's decision is wrong. Appeals follow the structure of the court hierarchy.

1 In the past, the highest court of appeal for Australia was the Privy Council in England. Which court is now the highest court of appeal in Australia? _____

2 The *Australia Act* (Cth) completely removed appeals to the Privy Council from all Australian courts. Visit the website of the Australian Legal Information Institute at http://www.austlii.edu.au/.

a Do a search to discover the year in which the *Australia Act* was passed.

_____

b Identify the other major thing that this Act did.

_____

3 Visit the website of the High Court of Australia at http://www.hcourt.gov.au/about/role-of-the-high-court.

a Identify when the High Court was established.

_____

b In which city is the High Court based?

_____

c Describe in your own words the functions of the High Court.

_____

_____

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Case study: Appealing to the High Court

Controversial Melbourne radio host Derryn Hinch launched a 'Name Them and Shame Them' campaign regarding sex offenders. He handed a petition to the Victorian premier during a rally at Parliament House. The petition demanded that parliament change laws so that judges and magistrates cannot suppress the names of serious sex offenders, unless such identification also identifies a victim.

During the course of the rally, Hinch publicly named two repeat offenders. This and a publication on his website led to him being charged with breaching section 42 of the *Serious Sex Offenders Monitoring Act 2005* (Vic). He was convicted by the Magistrates Court and appealed to the Supreme Court. The appeal failed, but he was granted the right to appeal to the High Court.

In *Hogan v Hinch* (2011) HCA 4, Hinch's lawyer argued that section 42 was invalid under the Australian Constitution, which implied that all court proceedings be carried out in public. Counsel also claimed the section infringed the implied constitutional freedom of political communication. The High Court analysed the arguments and considered previous case law. Hinch's arguments were held not to be supported, and so the appeal failed. He was sent back to the Magistrates Court for sentencing and received five months' home detention.

4 **Does Hinch have any other avenues of appeal after the High Court? Why or why not?**

5 **Why did Hinch have to seek consent to appeal to the High Court?**

6 **a** **Which other courts are bound to follow the High Court ruling?**

b **Is the High Court itself bound to follow its own previous rulings?**

7 **Putting aside legal matters for the moment, purely on a matter of policy, do you agree with Hinch's position or do you think sex offenders' names should be suppressed? Outline both sides of the argument and then reach your own conclusion.**

8 **Courts should only consider legal matters, and not matters of government policy. Discuss.**

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21 Alternatives to court

REMEMBER

Alternative dispute resolution (ADR) methods include complaining to relevant bodies, mediation and arbitration. In mediation, parties reach their own solution with the help of a mediator. In arbitration, the arbitrator makes a ruling that can be imposed.

1 **Mark true or false for the following questions.**

a **Self-help carries the risk that the person trying to resolve the dispute might inadvertently break the law and make matters worse.** ☐ True ☐ False

b **Parties to a commercial contract often agree to use arbitration if a dispute arises.** ☐ True ☐ False

c **Mediation works best when the parties have unequal power and bargaining skills.** ☐ True ☐ False

d **Arbitration is the ADR process that most closely resembles litigation.** ☐ True ☐ False

e **Mediation is a waste of time if a solution is not reached.** ☐ True ☐ False

Case studies: ADR and self-help

Katy bought a hairdryer from a department store. It cost $195. Katy used it daily for two months and had no problems. After that time, the hairdryer started to get very hot when she used it and Katy could smell her hair burning, even on the lowest setting. She was worried it would ruin her hair, so she stopped using it. She wants to take it back to the store and get a replacement. She remembers being told it had a one-year warranty. However, she no longer has the receipt or even the box that it came in. Katy paid with cash, so she has no credit card record of the purchase. Sadly Katy did not pick Legal studies as an elective, so she has no idea what to do. She turns to you, her good friend, for advice.

2 **Discuss the following options for Katy, examining the merits of each. Would you recommend Katy attempt each approach? Why or why not?**

a **Self-help: taking it back to the department store and asking for a refund.**

_____

_____

_____

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b **Lodging a complaint with her state's Fair Trading or Consumer Affairs department.**

c **Seeking advice from a solicitor experienced in consumer complaints.**

Roy suspected a prowler was targeting his house. On several occasions, his teenage daughter reported seeing a man's face pressed against her bedroom window. Each time Roy would rush outside with a torch, but by then the man had gone. Roy was worried for his family's safety. He decided to dig a deep pit next to his daughter's window, with the intention of capturing the prowler. He covered it with palm fronds and leaves so that the trap was hard to see, especially at night. The next night he heard his daughter scream. The prowler had sidestepped the trap and was knocking on her window. Roy ran outside, caught the prowler and wrestled him to the ground. Fired up with fear and adrenaline, Roy was rougher than he needed to be and ended up breaking the prowler's arm. The prowler escaped. Roy later received a solicitor's letter advising he was being sued for assault.

3 **a** **Describe the actions Roy took to resolve his problem with the prowler.**

b **Were they a recognised form of ADR?**

4 **Describe the risks Roy took by taking this action. Your answer should reference the different types of risks he assumed.**

5 **a** **Describe the action Roy should have taken instead.**

b **Recommend a course of action for Roy to take now.**

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Selected answers

1 Laws and rules

1 Loss of trust, end of a relationship, gaining a reputation of being untruthful. **2** There is a rule against lying under oath in court, known as perjury. There are also rules against lying to police officers in the course of their investigations. **3** Perjury is a serious offence and may be punishable by a fine or imprisonment. The consequences of lying to the police depend on the circumstances, but might amount to charges being brought for obstructing the police or wasting police time. **4 a** Picking his nose. **b** The women were repulsed and walked away. **c** No. Social rules generally only work if the person breaking the rules cares about the reaction they receive and wants acceptance. Al, on the contrary, wanted to shock the women. **5 a** A school rule was broken. **b** Al got into trouble and was taken to the principal, who could impose school disciplinary procedures. **6 a** A school rule was broken. **b** Al expected to get detention. Instead, the police were called and he was searched. He might be charged with an offence. **7 a** Breaking school rules can lead to disciplinary procedures such as suspension. Breaking the law can lead to criminal punishment. **b** Teachers generally do not have the right to search a student's property against their will. However, they are able to call the police, who do have that right. **c** Yes, teachers can search lockers as they are school property – even if the children have to pay to use the lockers. **8 a** *Consider:* The balance between the right to privacy and the need to ensure school rules are followed. **b** *Consider:* The balance between the right to privacy and the need to ensure other students are protected.

2 Classification of laws

1 contract law g, l; administrative law d, i; tenancy law k, o; torts b, h; constitutional law e; family law c, n; criminal law a, f; employment law j, m. **2 a** true **b** true **c** false **d** false **3** *Consider:* legal consequences and social stigma. **4 a** study **b** private **c** civil **d** government **e** public **5** From top left, clockwise: rights, duties, compensation, negligence, employment, governments, public, parliaments, public safety, wellbeing.

3 Australia's system of government

1 a true **b** true **c** false **d** false **e** false **f** true **2** Approving legislation, appointing ministers, dissolving parliament at election time. **3** Powers that can be exercised without the advice of the government, e.g. appointing and dismissing a prime minister, but only under exceptional circumstances. **4** Sir John Kerr. **5** The Liberal Party. **6** He appointed Malcolm Fraser, the leader of the opposition, as caretaker prime minister, dissolved parliament, and an election was held. The Liberal Party won and the Supply Bills were passed. **7** Could have warned Whitlam and given him a chance to resolve matter; could have warned opposition about the consequences of blocking supply; could have kept Whitlam on as caretaker rather than appointing leader of the opposition. **8** *Consider:* Should a person who was not elected have the ability to dismiss an elected government? Does this reflect the people's will? Should he have warned Whitlam of his intentions beforehand? **9 a** The leader of the political party in power **b** The official chief representative of a country **c** Containing an upper and lower house

4 Federal and state powers

1 Exclusive: f, h, j, k, l. Concurrent: b, d, g. Residual: a, c, e, i. **2** c **3** b **4** d **5** c **6** *Consider:* Which level of government is more important and has greater rights and/or the greater support of the public? **7** *Consider:* Should the external affairs issue apply to this case?

5 The separation of powers

1 executive; linked; doctrine; parliament; responsible; Westminster; scrutinised; opposition; bicameral; both. **2** Each arm provides checks and balances on each other, meaning no one body has complete power. **3** That body or person would have absolute power and there would be nothing to stop them from enforcing a tyrannical and unjust regime. **4** Members of the public who were treated unfairly by the government might have no access to justice. There would be no recourse against the executive's actions. **5** Incapacity refers to the inability of a judge to carry out their functions, for example, due to mental illness. Proven misbehaviour means the judge acted in a way inconsistent with their role. This could be narrow or broad, depending on how the phrase is interpreted. **6** *Consider:* Whether personal life impacts on the ability to do the job, how important public confidence is, the issue of morals. **7 a** Murphy praised the jury system because juries uphold justice. **c** Juries are made up of ordinary members of the public and cannot be controlled by any arm of the government. They prevent wrongful convictions and provide a check against oppressive laws and injustice.

6 Changing the constitution

1 1913 rejected; 1926 rejected; 1937 rejected; 1946 accepted; 1951 rejected; 1967 accepted; 1977 accepted; 1988 rejected; 1999 rejected. **2** The Commonwealth cannot make laws on any subject it pleases. Its powers are spelt out in section 51 of the Constitution. Amending this section can broaden its powers. **3** The states can agree to refer some of their powers to the Commonwealth. **4** Majority of the population – to ensure most Australians support the proposal. Majority of states – to ensure the more populous states do not override the interests of the less populous states. **5** *Consider:* Resistance to change, conservatism. **6** Acknowledges those who died in wars; upholds freedom and the rule of law; recognises Indigenous Australians, migrants and the need to protect the environment; provision of equal opportunities for all. **7** *Consider:* Issues of modern importance, such as equality of races, sexes, environmental protection, workplace rights.

7 Parliament

1 a **2** c **3** a **4** d **5 a** A coalition. **b** The Liberal Party and the National Party. **6** *Consider:* Small minority calling the shots; maybe inevitable given the circumstances or maybe there should have been another election. **7** *Consider:* Arguably no mandate, but maybe no practical choice; other option is calling another election, which is expensive and could end up with similar result to previous one. **8 a** A proposed law **b** Regulations made by government departments (the executive).

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8 Courts

1 The first way is where no legislation exists. The second way is through interpretating existing legislation. **2** precedent; guide; similar; cases; hierarchy; importance; higher; bound; prior; persuasive. **3 a** legislation **b** interpret **c** natural **d** statutes **e** Stevenson **f** precedent **g** hierarchy **4 a** Courts are obliged to follow rulings set in previous similar cases by courts higher up in the same legal hierarchy. **b** Yes – according to the doctrine of precedent, courts must follow rulings by courts higher up in that state's hierarchy. **c** No – Victoria and NSW are in different hierarchies; hierarchies go along state/territory lines. **d** No – according to the doctrine of precedent, courts are not obliged to follow rulings of courts lower on their hierarchy. **e** Yes – the High Court sits at the top of both the federal and state hierarchies and must be followed by all courts.

9 Indigenous customary law

1 British; Indigenous; customary; punishment; recognition; power; parliament; request.

10 International law

1 When a country ratifies an agreement they have signed, the country are agreeing that they will be bound by the convention rules. **2 a** Biological **b** Sugar **c** Nuclear **d** Economic **e** Rights **f** Corruption **3** d **4** c **5** d **6** b **7** b

11 Law reform

1 *Consider:* Reflection of community attitudes, competing views within society, how the law should decide whose views to uphold, the legal and social consequences of passing the Bill and of not passing the Bill.

12 The nature of justice

1 Members of the public should be able to view proceedings to ensure that justice is taking place and that no tyranny exists. This gives the public confidence in the legal system. **2** *Consider:* Equality of treatment versus actual threat to community. **3** *Consider:* Reasons for speeding, attitude to other road users, any mitigating factors. **4** *Consider:* Equal fines do not have equal effect on people of different financial circumstances. **5** *Consider:* Intent, voluntariness, recklessness. **6** *Consider:* Risk to society, potential for harm and actual harm.

13 Human rights under international law

1 1976; 1990; 1987; 1969; 1976. To find participants, students should click on the 'participants' tab on the website's table. **2** ACROSS: 1 housing; 3 apartheid; 9 asylum; 10 innocent; 14 refugee; 15 positive; 17 privacy; 19 unionism; 20 impartial; 21 rights; 23 treaty; 24 discrimination; 25 war. DOWN: 2 nuclear; 4 exile; 5 religion; 6 slavery; 7 convention; 8 liberty; 11 suffrage; 12 customary; 13 arrest; 16 equal; 18 children; 22 torture.

14 Human rights in Australia

1 Rights; Liberties; monarchy; elections; speech; amendments; infringe; press. **2** Personal opinion. **3** Probably not enough protection, as the High Court is not bound to follow its previous decisions and might change its mind at any time, restricting the implied rights. **4 a i** The law would be made by being passed by both houses of parliament. **ii** The law can be changed in the same way as it was made. **iii** Penalties for noncompliance can be imposed. **b i** A majority of voters in a majority of states would need to agree in a national referendum (not easy). **ii** The same applies for any further changes but note that parliament does not have the ability to override the constitutional provisions. **iii** Parliament itself has to comply or any law it passes could be struck down. **5** *Consider:* Legislation is easier to make but also easier to change, so a future government could reverse the rights. The Constitution is harder to change and requires a referendum. This would be more effective but harder to achieve.

15 Individuals and the state

1 MP: informal; Threat of voter backlash may make MP put pressure on parliament. Original decision-maker: formal; Seeking merits review using the body's own dispute mechanisms. Interest group: informal; by grouping together are able to lobby parliament more successfully. External body or tribunal: formal; seeking merits review, where tribunal can substitute its own decision. Ombudsman: formal; investigate complaints made, can make suggestions but not impose solution. Trade union: informal; industrial action might be threatened if the matter is not resolved. **2** Citizenship; Commonwealth workers' compensation; social security and family assistance; taxation; veterans' pensions. **3** Decisions made by local governments, state and territory governments, private sector. **4** 28 days. **5** The person needs to make an application in writing applying for an extension, stating reasons for the delay. **6** A conference is held between the complainant and someone from the government body. Mediation or conciliation is used to help the parties reach an agreement. If none is reached, there may be a hearing and the AAT will make a decision. **7** Judicial reviews are more limited than merits reviews. Courts cannot consider the merits of a case; instead they can only consider whether the decision breached the law. **8** A decision that breaches the law because it is outside the scope of the decision-makers authority. **9** Natural justice is also known as procedural fairness and consists of two key elements: the right to be heard by the decision-maker; the decision-maker must be unbiased.

16 Disadvantaged groups

2 Ms Evans said she was treated unfairly in the workplace because she was a single parent and had to take time off to care for her sick child. **3** Most likely. The employer made it clear she would not have been employed if her circumstances had been known. **4** How her co-workers were treated – especially co-workers who were in a similar position to her – and compare it to how males and childless women were treated. **5 a** Discrimination against members of the majority, generally white males. **b** Action taken to favour those who have historically suffered from discrimination.

17 The adversarial system

1 a false: Courts in Europe commonly use the inquisitorial system **b** true **c** false: A person commencing civil proceedings is known as the plaintiff **d** true **e** false: The standard of proof is not the same in civil and criminal cases **f** true **g** false: The prosecution needs to prove the

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case beyond reasonable doubt. **h** true. **2 a** ii **b** iv **c** i **d** v **e** iii **4** a another **b** assets **c** trust **d** legal

18 The role of the jury

1 a true **b** true **c** false **d** false **e** true. **2** Case study 1: Cannot happen – jury does not determine sentence. Case study 2: Should not happen – judges cannot direct a jury to return a particular verdict. Case study 3: Should not happen – jury deliberations are secret in Australia and jurors are not permitted to discuss what goes on in the jury room. **3** Questions of fact: **a** i, **b** ii, **c** i, **d** i; Questions of law: **a** ii, **b** i, **c** ii, **d** ii. **4** *Consider:* Costs of retrial, whether a dissenting juror is being obstructive, danger of bullying dissenters or dismissing their opinion.

19 Courts and tribunals

1 a Local Court: NSW; Magistrates Court: remainder. **b** County Court: Vic; District Court: remainder (except no intermediate courts in Tasmania or territories). **2** Children's Court or Coroner's Court. **3** Local or Magistrates court. **4** Supreme Court. **5** Federal Magistrates Courts, Federal Court. **6** formal; evidence; hearsay; representation; quicker; expensive; members; binding. **7** Courts: a, c, g; Tribunals: b, d, e, f, h. **8** Floor plan A represents a courtroom, as it includes a dock and jury box. It is generally open to the public (with some exceptions), but for tribunals this depends on the rules of the individual tribunal. Also, the layout of A is formal. Floor plan B represents a tribunal. It is less formal and does not include the criminal justice element.

20 Appeals

1 High Court of Australia. **2 a** 1986. **b** The Act formally ended the UK parliament's ability to legislate for Australia and to be involved in Australian government. **3 a** 1901. **b** Canberra. **c** It hears appeals from federal, state and territory courts. There is no automatic right to appeal, it must be granted by the High Court itself. It determines cases concerning the constitutional validity of legislation (this is in its original jurisdiction, not on appeal from other courts). **4** No. The High Court is the highest court of appeal in Australia. **5** There is no automatic right to appeal to the High Court. The party wishing to appeal has to persuade the court that there is a special reason why the appeal should be heard. **6 a** All other courts in Australia are bound to follow the High Court ruling. **b** The High Court is not bound to follow its own prior decisions, but will generally do so unless there is a good reason not to. **7** *Consider:* Protection of children, rights of parents, magnitude of threat, offender's ability to rehabilitate. **8** *Consider:* Role of the courts: should they have a political role? Unlike parliament, judges are not elected by the people.

21 Alternatives to court

1 a true **b** true **c** false **d** true **e** false. **2 a** Worth a try. The store would most likely replace the hairdryer if she had kept the receipt. It might replace it anyway, for the sake of customer goodwill. She might have to talk to the store manager if the cashier operators are unhelpful. **b** Worth a try. The department will require her to first approach the store directly and try to resolve the problem. Making a complaint to the department is free. She should show copies of any letters she may have written to the store requesting a refund. **c** Unlikely to be worth it. A solicitor will charge her a considerable sum – probably more than the cost of a new hairdryer. **3 a** The actions included creating a hidden trap and catching and wrestling the prowler. **b** They could be seen as amounting to self-help, which is not a recognised form of ADR. **4** Roy risked being injured himself in the confrontation with the prowler. He risked being charged with assault and/or being sued by the prowler for his injuries. **5 a** Roy should have reported the matter to the police. **b** Roy should not ignore the letter, rather he should see his own solicitor. The prowler might agree not to sue; perhaps a settlement can be reached.

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The Interactive Instant Lessons resource pack

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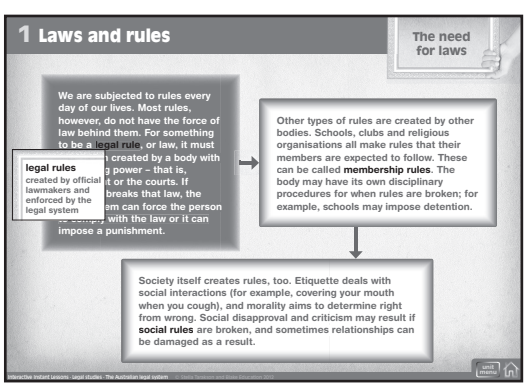

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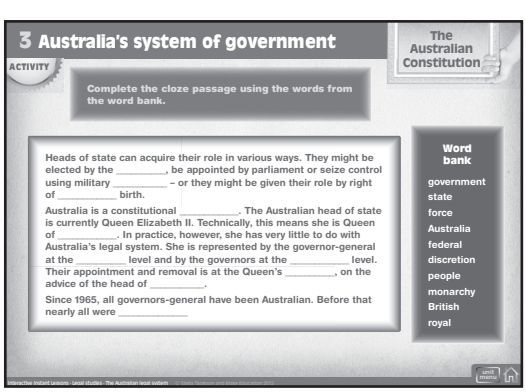
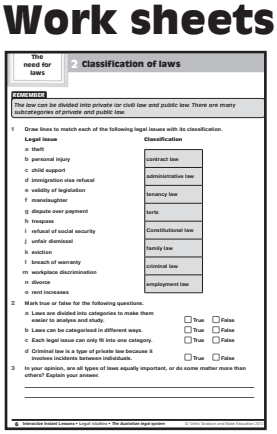


- Reinforce and extend the concepts outlined in each unit introduction
- Able to be completed as a class activity or by individual students
- Discussion questions provide a platform for class discussion
- Interactive activities include drag-and-drop, multiple-choice and true-or-false activities
- Repetition of question types to build student confidence

Work sheets



- Consolidate and revise the learnings in the unit introduction and interactive activity
- Can be set as class work or homework
- Students can complete interactive versions on the CD-ROM or photocopiable versions from the book

For quick-reference guides to all 21 interactive instant lessons, see pages 4–24 of this pack.

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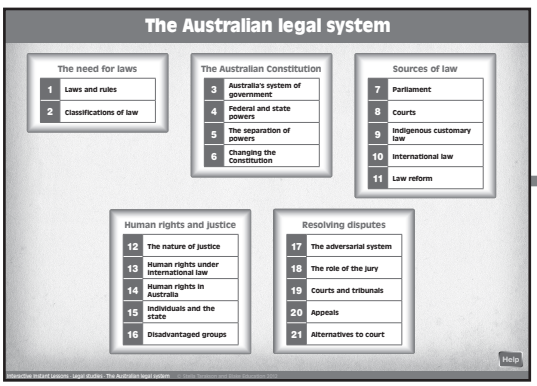
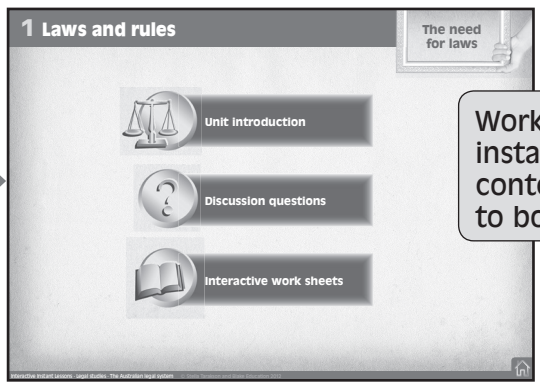
How to use the CD-ROM

Main menu

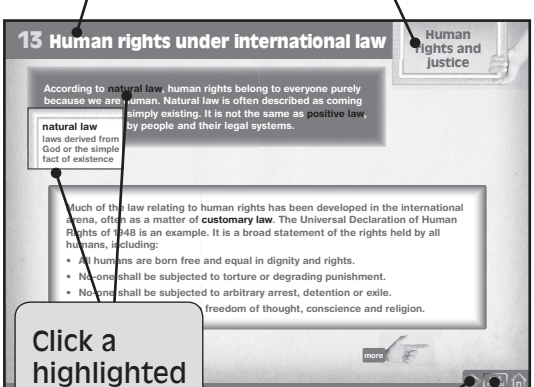


Unit menu



Work through the instant lesson content from top to bottom

Unit introduction



Unit name

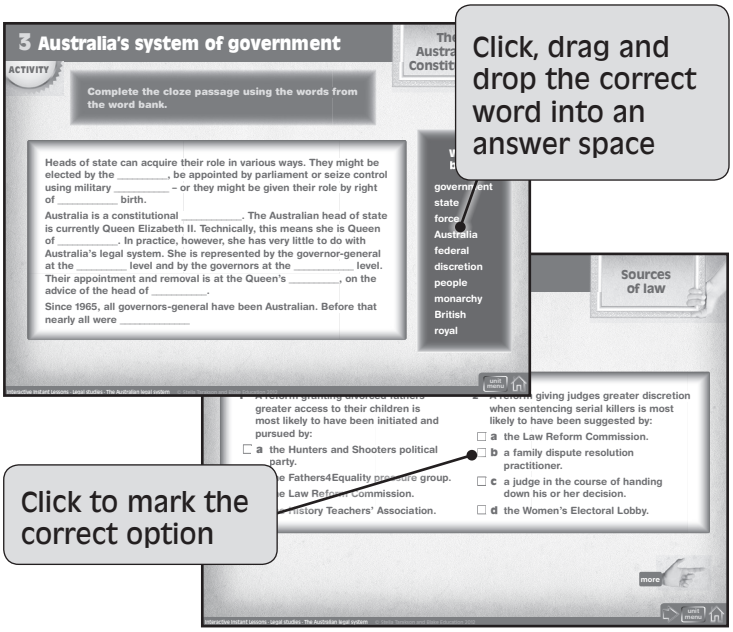
Section name

Click a highlighted legal term to see its definition

Click to navigate to the next page

Click to return to the unit menu

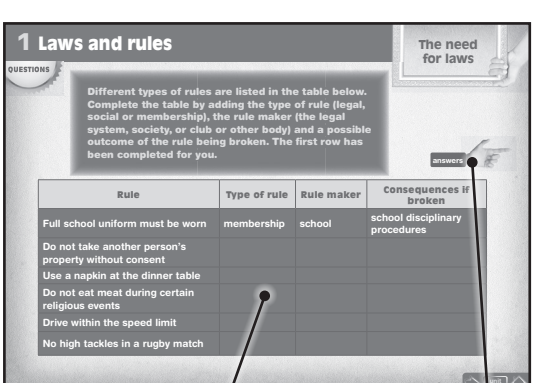
Interactive activities



Click, drag and drop the correct word into an answer space

Click to mark the correct option

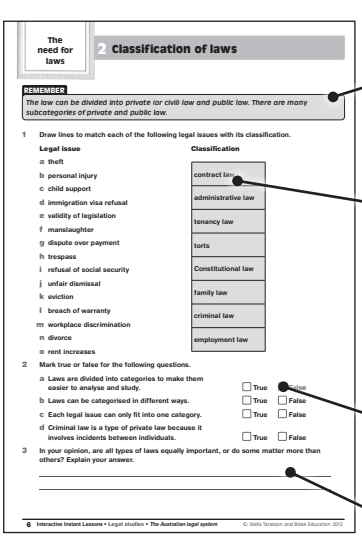
Discussion questions



Type or write answers into each space

Hand icon indicates an answer page or more content

Interactive work sheets



'Remember' text recaps main points of the lesson

Use the Line tool on the Comment & Markup toolbar (or on the Drawing Markups tab) to link the options

Click to mark the correct option

Type your answers into the answer space

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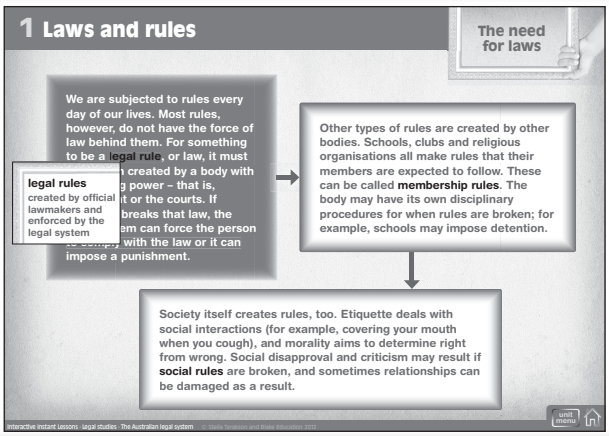
1 Laws and rules

INTERACTIVE INSTANT LESSON

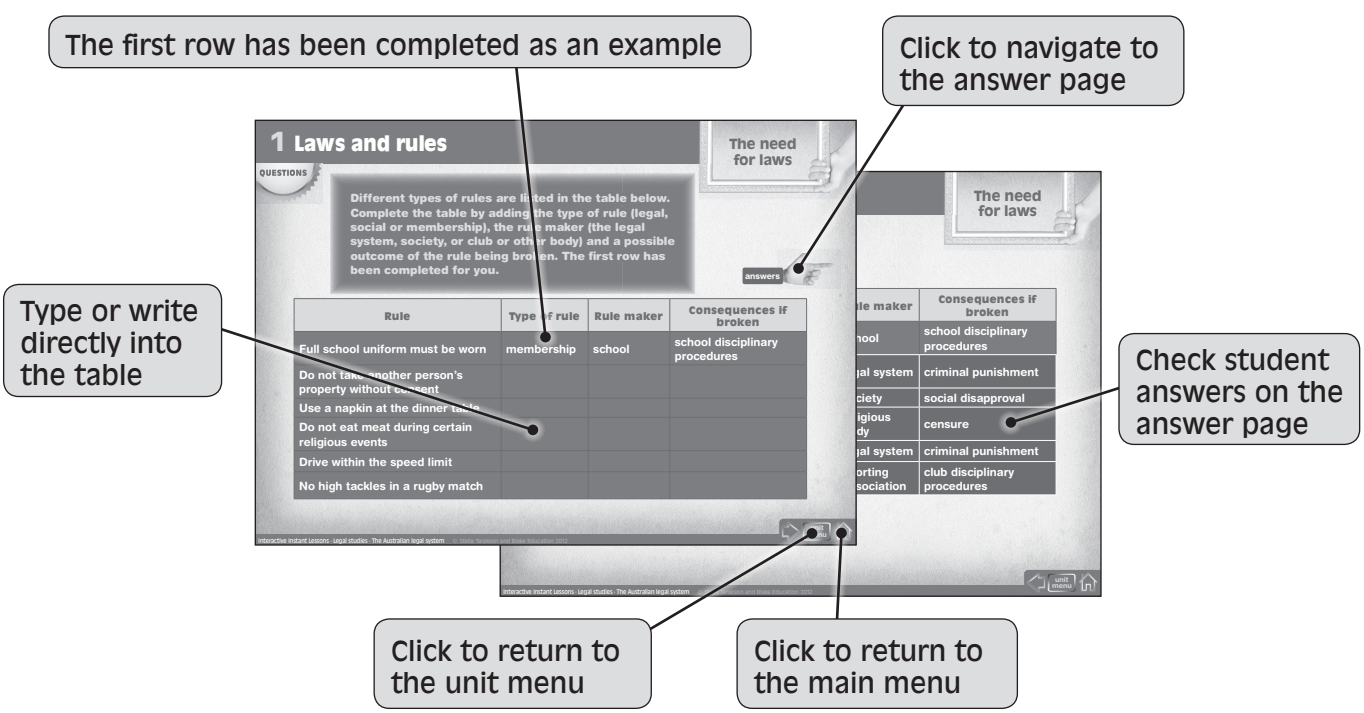
Introduction

- *Introduces three common types of rules: legal rules (laws), membership rules and social rules.*
- *Students learn that breaking a rule usually has consequences.*



Discussion questions

Complete the table by adding the type of rule, the rule maker and a possible outcome of the rule being broken.



Work sheets

Consolidate student learning using the work sheets for Unit 1. The work sheets include:

- *questions about social and legal rules and the ramifications of breaking rules*
- *a fictional case study about Al, a teenager who breaks many rules*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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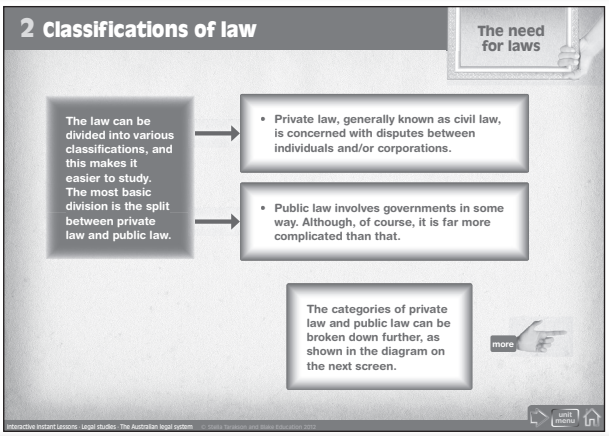
2 Classifications of law

INTERACTIVE INSTANT LESSON

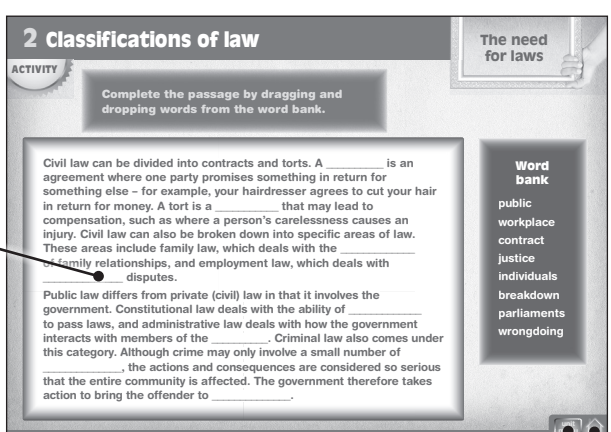
Introduction

- *Explains that the law can be divided into private (or civil) law and public law.*
- *Students learn that there are many subcategories of private and public law.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 2. The work sheets include:

- *an activity where students must match areas of law to the correct lawmaking power*
- *true-or-false and other comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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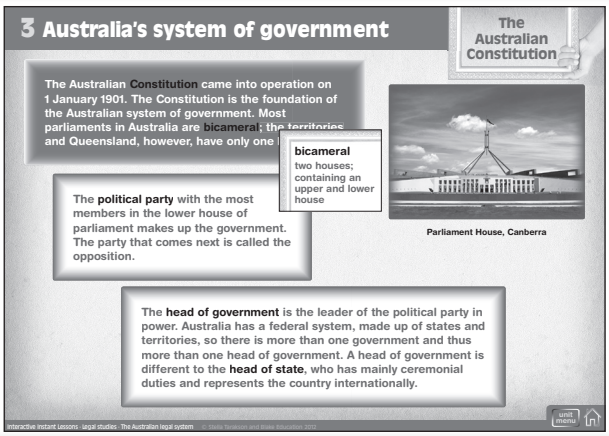
3 Australia's system of government

INTERACTIVE INSTANT LESSON

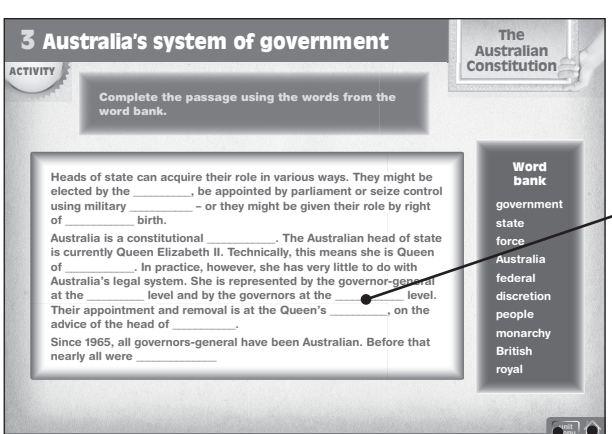
Introduction

- *Explains Australia's system of government and terms such as head of government and head of state.*
- *Students learn about parliaments, political parties and other players.*
- *Image shown: Parliament House, Canberra, is the seat of the Parliament of Australia (the federal parliament).*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 3. The work sheets include:

- *true-or-false questions*
- *a real-life case study about the sacking of the Whitlam government in 1975*
- *comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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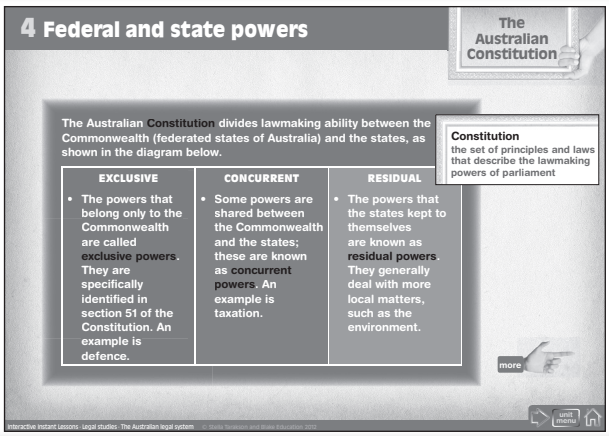
4 Federal and state powers

INTERACTIVE INSTANT LESSON

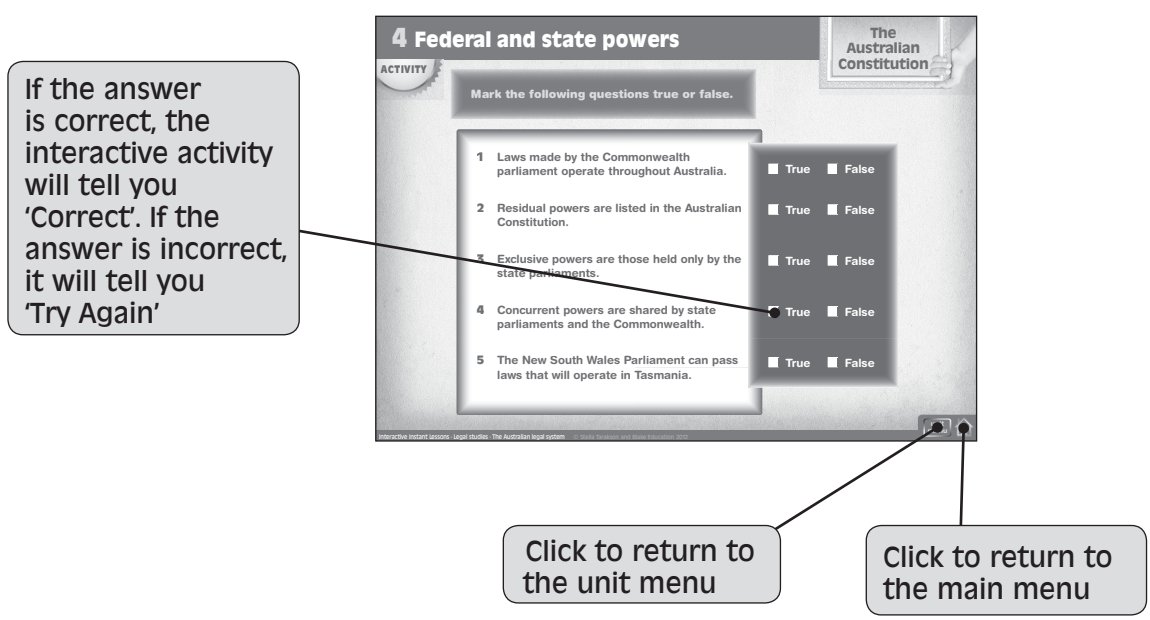
Introduction

- *Explains the lawmaking powers of the Commonwealth and the states and territories.*
- *Students learn the meaning of exclusive powers, residual powers and concurrent powers.*
- *Image shown: Parliament House, Melbourne, is the seat of the Parliament of Victoria.*



Interactive activity

Mark each of the five questions 'true' or 'false'.



Work sheets

Consolidate student learning using the work sheets for Unit 4. The work sheets include:

- *an activity where students must match a legal issue to its legal classification*
- *a real-life case study about a clash between federal and state laws*
- *multiple-choice and other comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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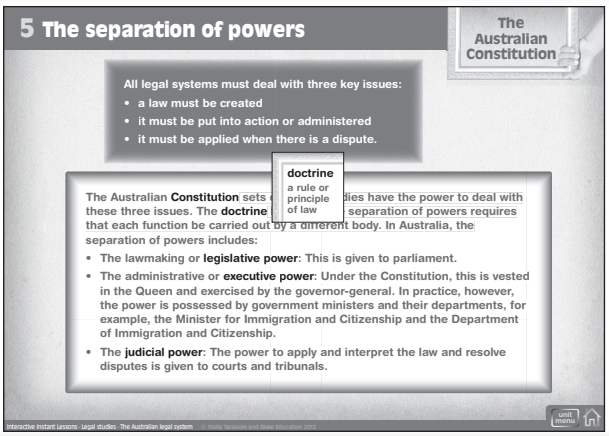
5 The separation of powers

INTERACTIVE INSTANT LESSON

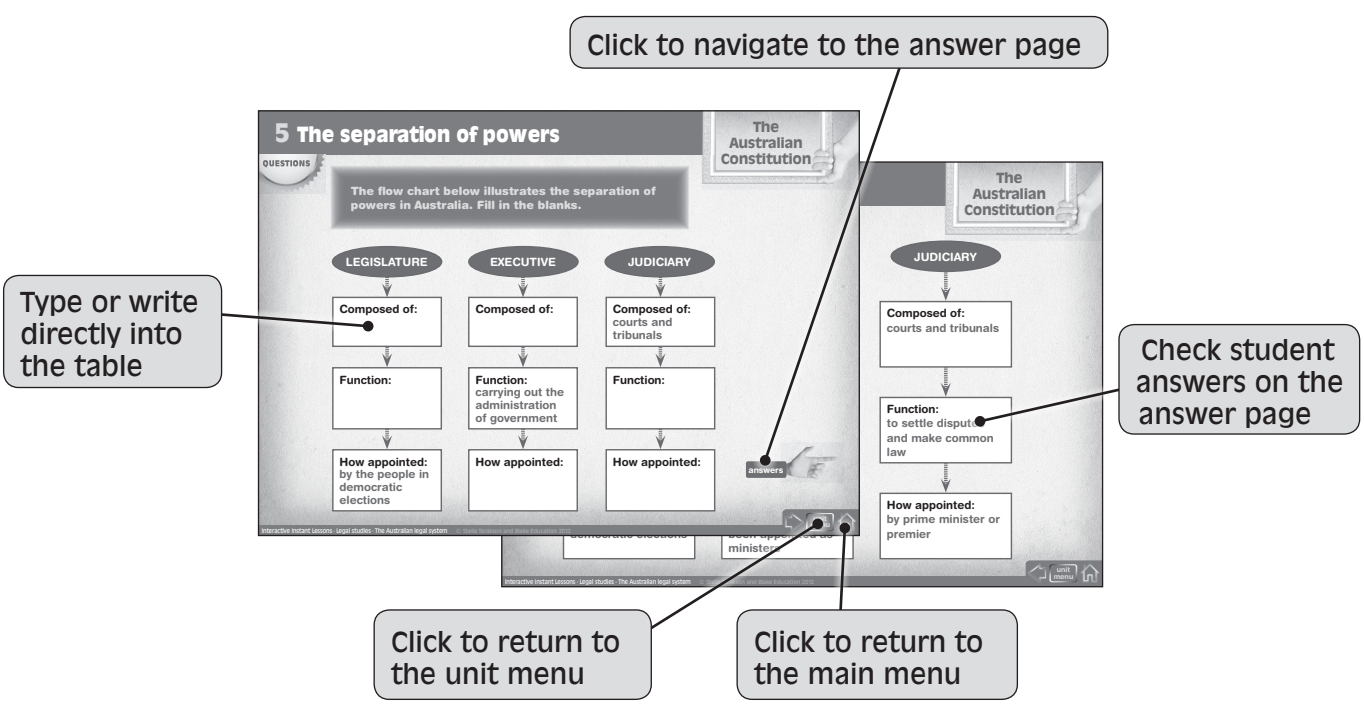
Introduction

- *Introduces the doctrine of the separation of powers.*
- *Students learn about legislative, executive and judicial powers, and who holds these powers.*



Discussion questions

Fill in the gaps in the flow chart about the separation of powers.



Work sheets

Consolidate student learning using the work sheets for Unit 5. The work sheets include:

- *a cloze passage about legislative and executive functions*
- *a real-life case study about a radical and outspoken judge*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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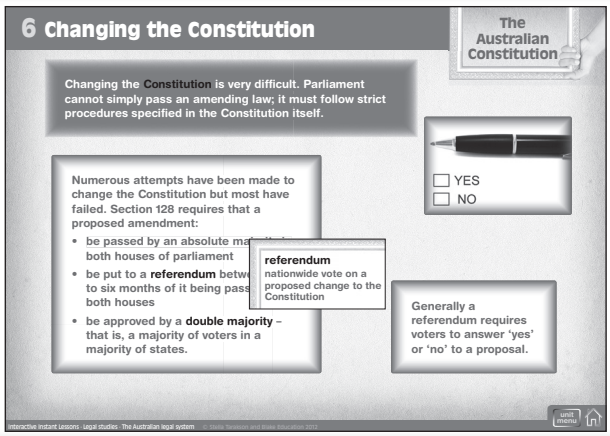
6 Changing the Constitution

INTERACTIVE INSTANT LESSON

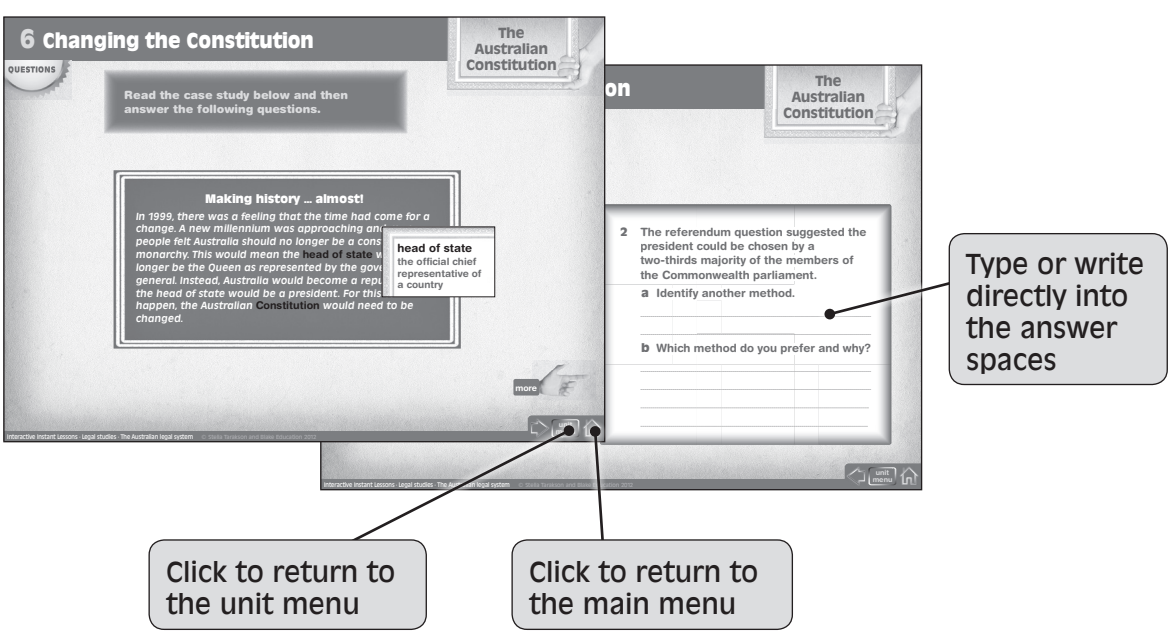
Introduction

- *Explains that it is very difficult to change the Constitution.*
- *Students learn about proposed amendments and referenda.*



Discussion questions

Read the case study about the failed 1999 referendum and discuss the questions that follow.



Work sheets

Consolidate student learning using the work sheets for Unit 6. The work sheets include:

- *a table listing nine referenda*
- *extension questions*
- *a research question about the preamble proposed in the 1999 referendum*
- *questions prompting small group discussion.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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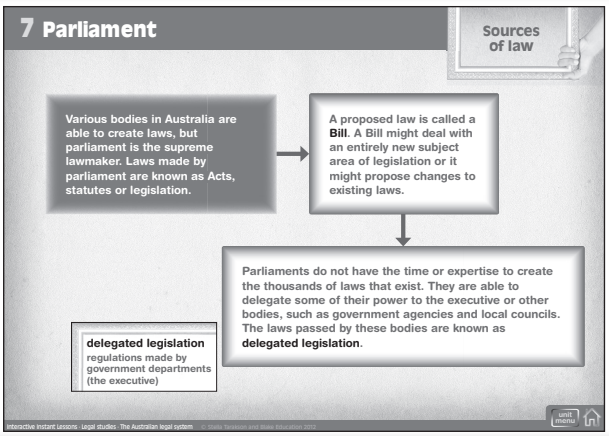
7 Parliament

INTERACTIVE INSTANT LESSON

Introduction

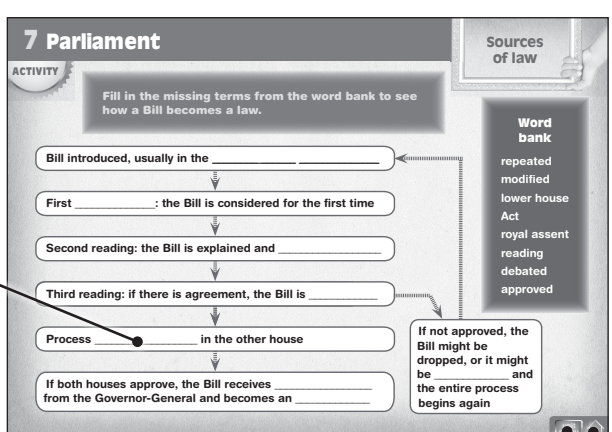
- *Explains that parliament is the supreme lawmaker in Australia.*
- *Students learn about Acts, Bills and delegated legislation.*



Interactive activity

Complete the flow chart about how a Bill becomes law by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 7. (TIP: Ensure students know the meaning of 'mandate'.) The work sheets include:

- *multiple-choice questions on how a Bill becomes an Act*
- *a real-life case study about the 2010 federal election*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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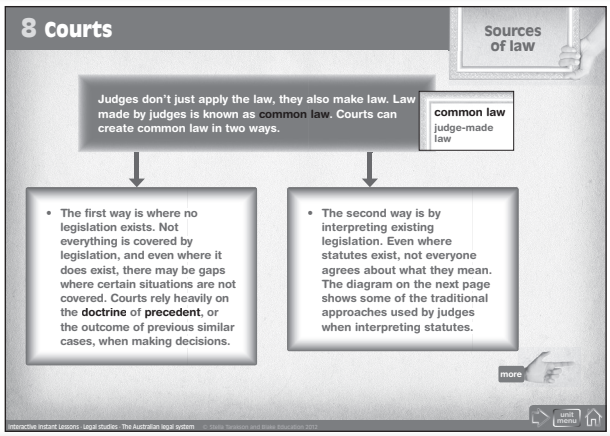
8 Courts

INTERACTIVE INSTANT LESSON

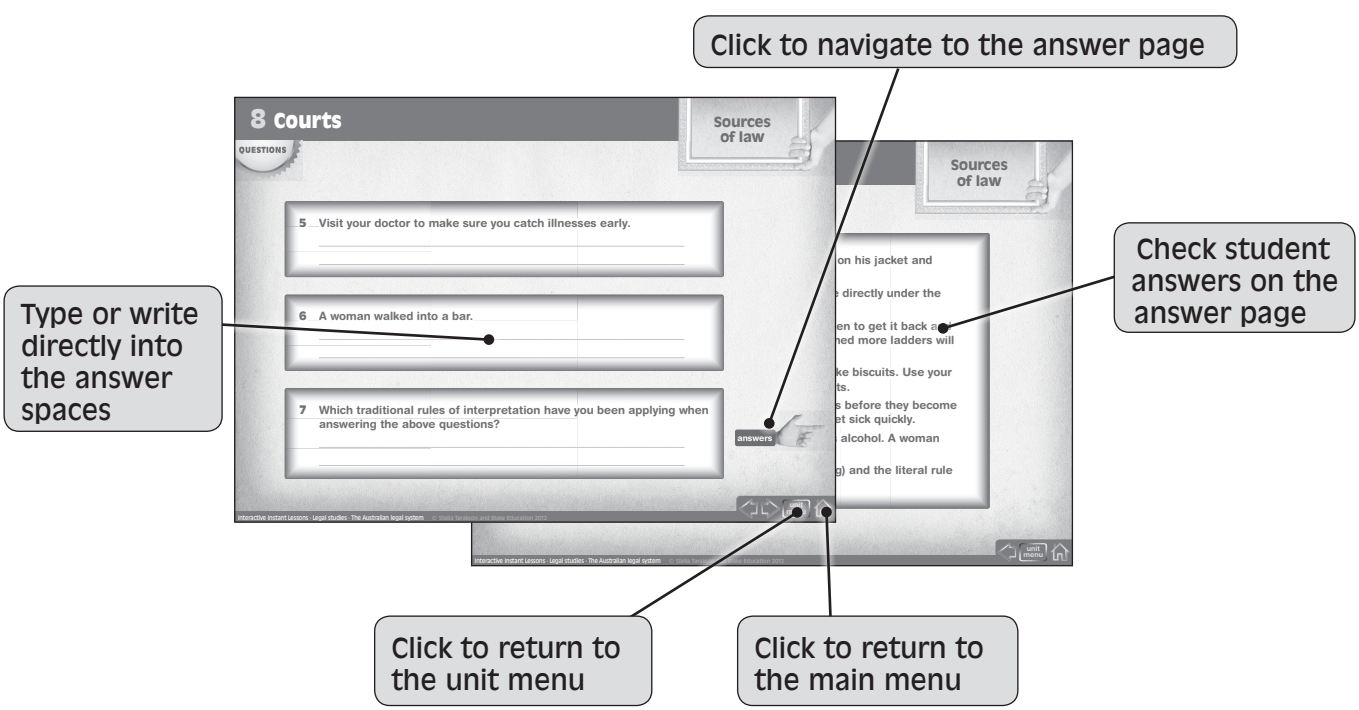
Introduction

- *Explains that judges don't just apply laws, they make laws.*
- *Students learn how judges create laws where legislation does not exist, and how they also create laws by interpreting legislation.*



Discussion questions

Work through each of the examples, discussing how words and statements are capable of more than one meaning.



Work sheets

Consolidate student learning using the work sheets for Unit 8. The work sheets include:

- *a real-life case study about the creation of a common law where no statutory law existed*
- *a cloze passage about common law and court decisions*
- *comprehension questions about common law, the doctrine of precedent and the court hierarchy.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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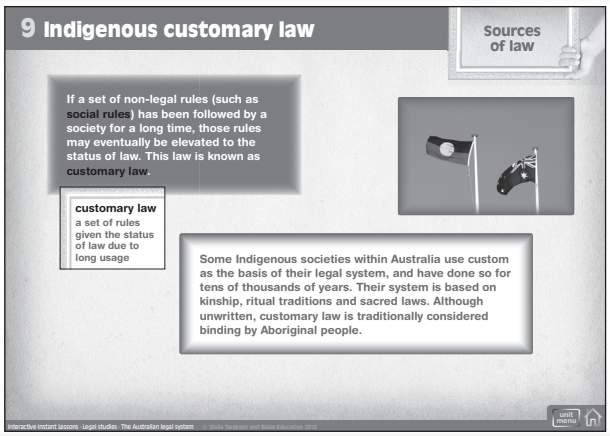
9 Indigenous customary law

INTERACTIVE INSTANT LESSON

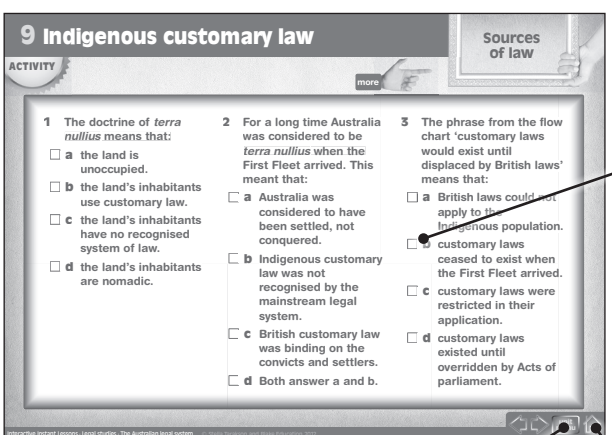
Introduction

- *Explains how longstanding social rules can become customary law.*
- *Students learn that some Indigenous societies within Australia use custom as the basis of their legal system.*



Interactive activity

Read the flow chart and then answer the multiple-choice questions by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 9. The work sheets include:

- *a cloze passage about the history of European law and Indigenous Australians*
- *a fictional case study about the application of customary law*
- *comprehension questions*
- *an idea for a class debate.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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10 International law

INTERACTIVE INSTANT LESSON

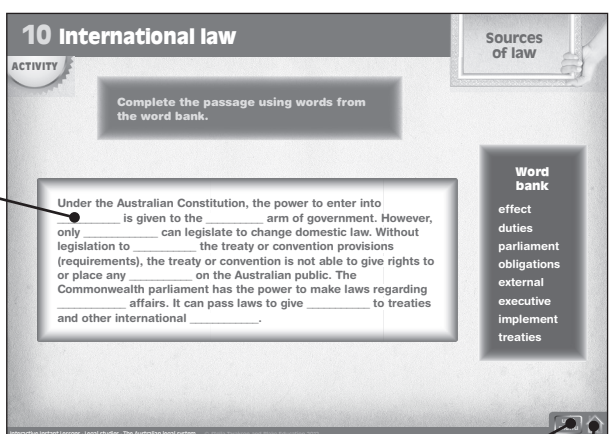
Introduction

- *Explains that international law is not law in the traditional sense; it is developed through international treaties and agreements.*
- *Students learn that for a particular international law to apply to a country, that country must have signed and ratified the agreement that contains the law. The country must also pass legislation that gives effect to the agreement.*

Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank in an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 10. The work sheets include:

- *an activity that identifies some of the treaties that Australia has ratified*
- *a real-life case study about the Northern Territory Emergency Response (NTER) in 2007*
- *multiple-choice questions about the case study.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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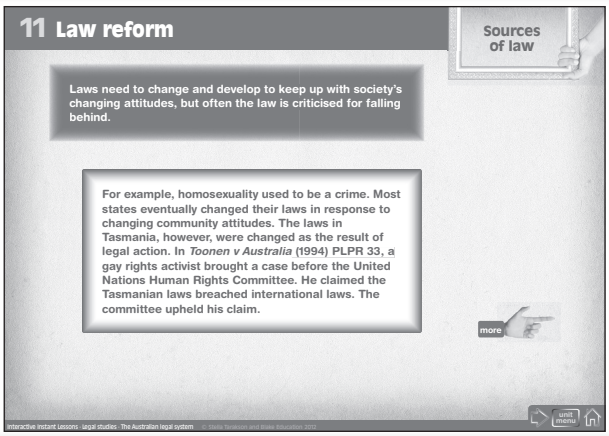
11 Law reform

INTERACTIVE INSTANT LESSON

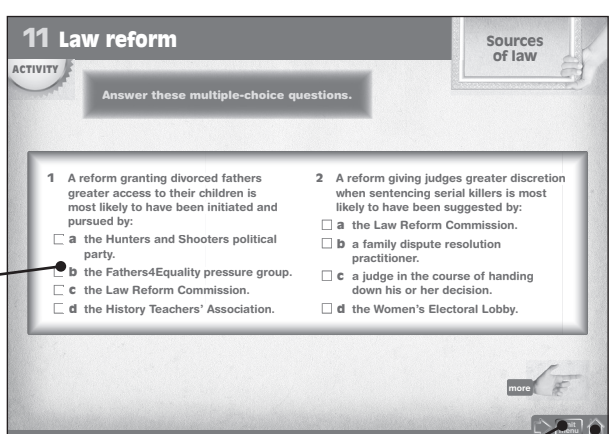
Introduction

- *Explains how laws need to change and develop to keep up with society's changing attitudes.*
- *Students learn that calls for reform can come from many different places.*



Interactive activity

Answer the multiple-choice questions about law reform by marking the options you think are correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 11. The work sheets include:

- *a fictional newspaper article about the introduction of a curfew for teenagers*
- *an extension question, asking students to write a fictional letter of complaint to their federal member of parliament.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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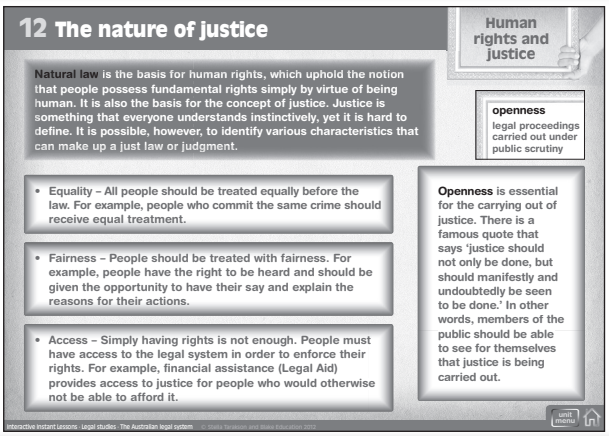
12 The nature of justice

INTERACTIVE INSTANT LESSON

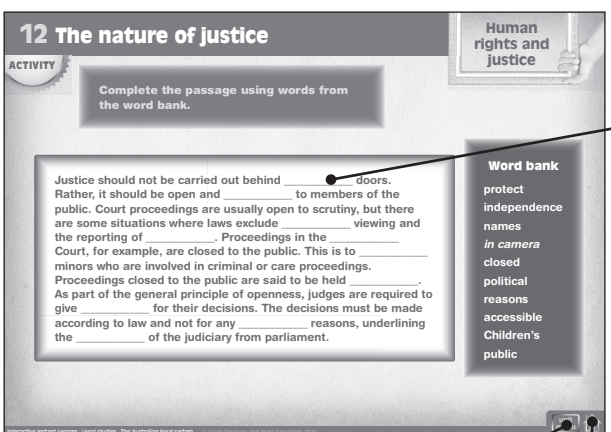
Introduction

- *Explains that justice is hard to define, but that a just law or judgement usually has the characteristics of equality, fairness and access.*
- *Students learn about equality, fairness and access, and they learn that openness is also essential to a justice system.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 12. The work sheets include:

- *a question about the importance of justice*
- *a fictional case study about four people caught speeding, which explores equality of treatment*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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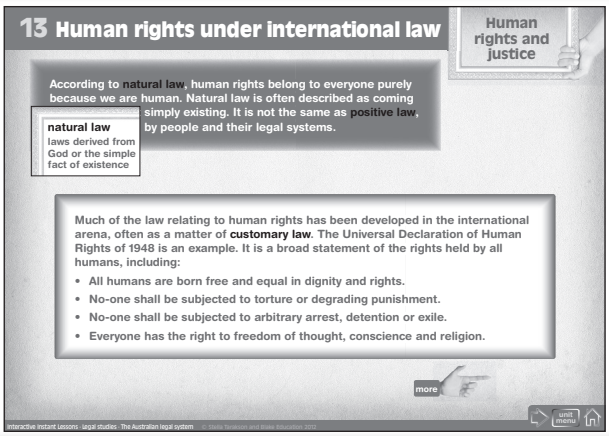
13 Human rights under international law

INTERACTIVE INSTANT LESSON

Introduction

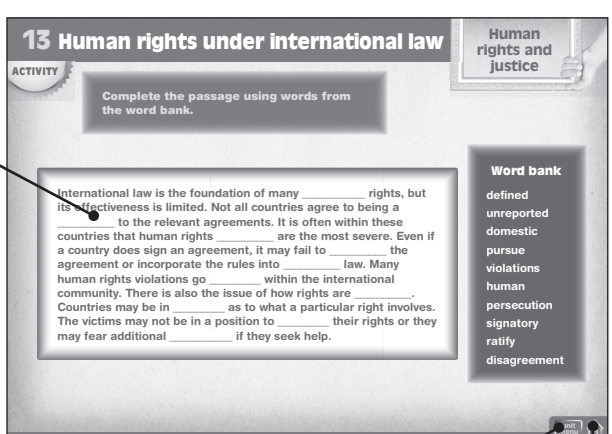
- *Explains the difference between natural law and positive law, and how human rights laws have often come from international customary law.*
- *Students learn about the Universal Declaration of Human Rights of 1948.*
- *Image shown: The United Nations, Geneva, Switzerland. The United Nations is an international organisation that facilitates cooperation in international law.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 13. The work sheets include:

- *a research question about five human rights treaties*
- *a human rights crossword.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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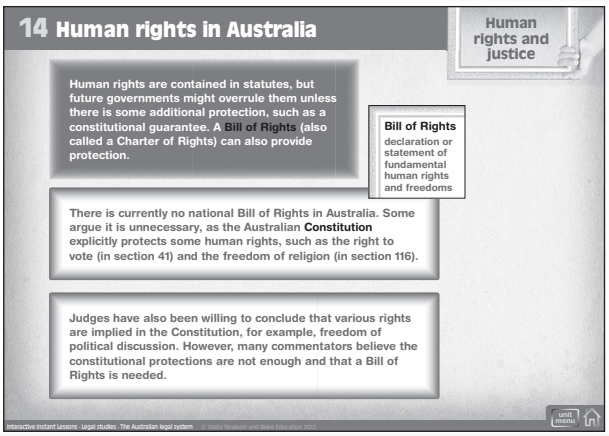
14 Human rights in Australia

INTERACTIVE INSTANT LESSON

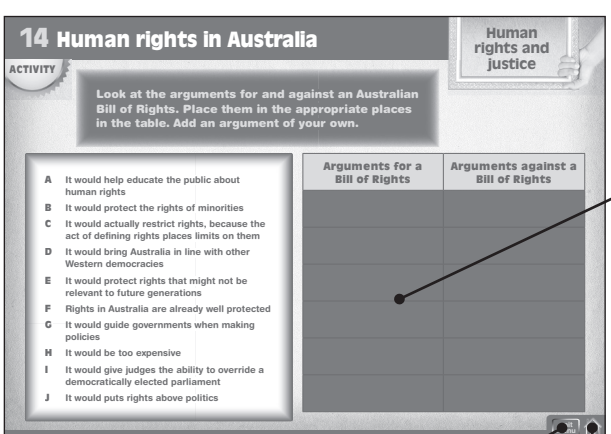
Introduction

- *Explains that statutory human rights can be overruled in areas where there are no constitutional guarantees.*
- *Students learn about the arguments for and against a Bill of Rights in Australia.*



Interactive activity

Drag and drop each of the arguments in the word bank into the correct column of the table.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 14. The work sheets include:

- *a cloze passage about the British and US bills of rights*
- *a real-life case study about human rights in the Australian Constitution*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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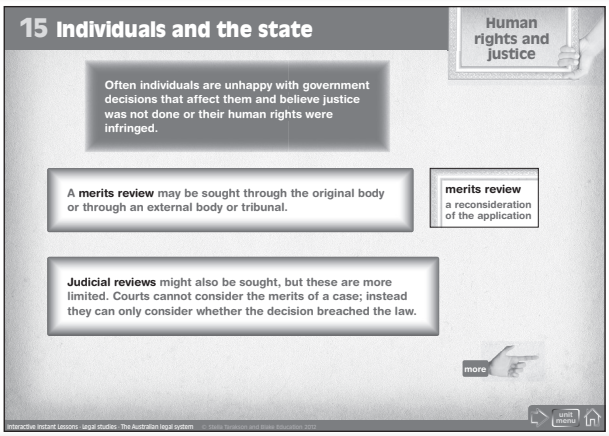
15 Individuals and the state

INTERACTIVE INSTANT LESSON

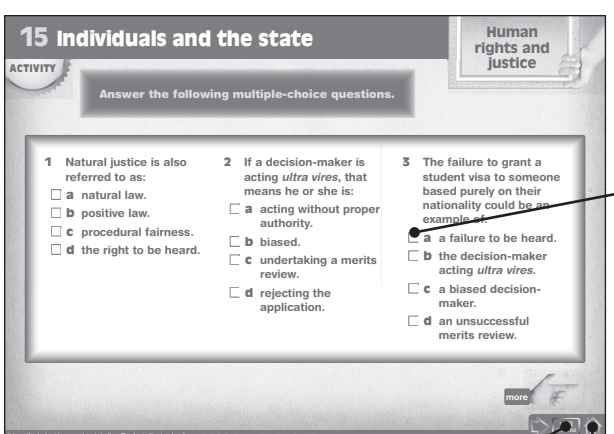
Introduction

- *Explains what individuals can do if they are unhappy with government decisions that affect them.*
- *Students learn about merits reviews and judicial reviews.*



Interactive activity

Answer the multiple-choice questions by marking the option you think is correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 15. The work sheets include:

- *a table identifying ways that individuals can challenge government decisions*
- *information about the Administrative Appeals Tribunal*
- *comprehension and extension questions.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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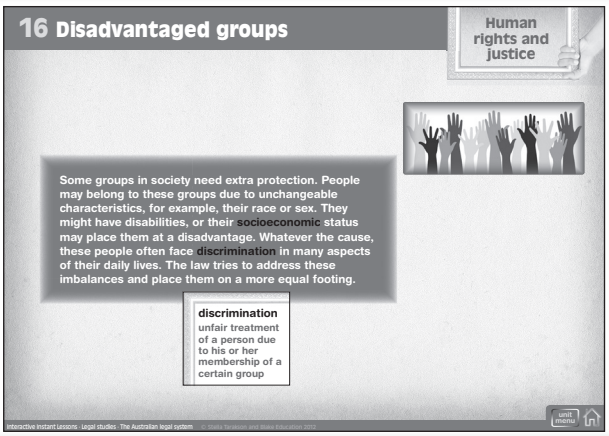
16 Disadvantaged groups

INTERACTIVE INSTANT LESSON

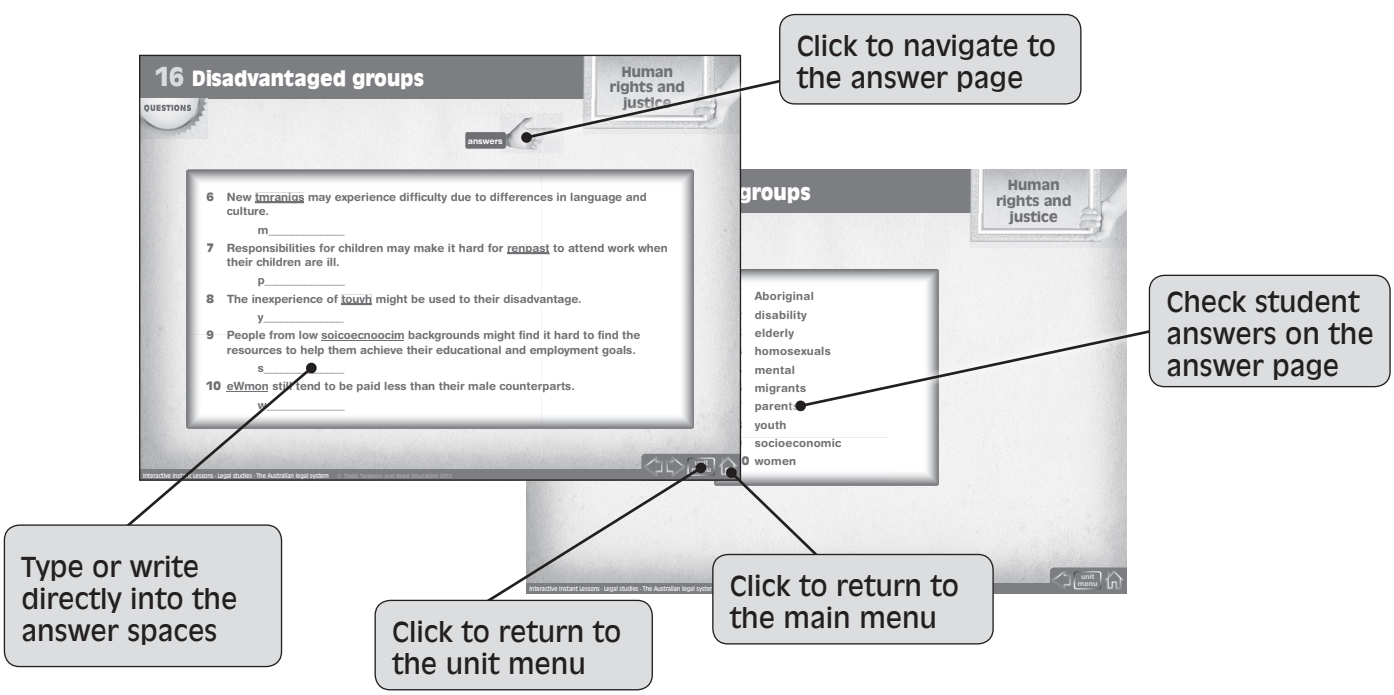
Introduction

- *Explains that some groups in society need extra protection under the law from discrimination.*
- *Students learn that discrimination laws try to place everyone on a more equal footing.*



Discussion questions

Unjumble the nonsense words in the sentences that describe groups of people who have experienced discrimination or disadvantage. Type or write in your answer, then check your answers.



Work sheets

Consolidate student learning using the work sheets for Unit 16. The work sheets include:

- *questions about possible situations where an individual may face discrimination*
- *a real-life case study about discrimination in the workplace*
- *comprehension and extension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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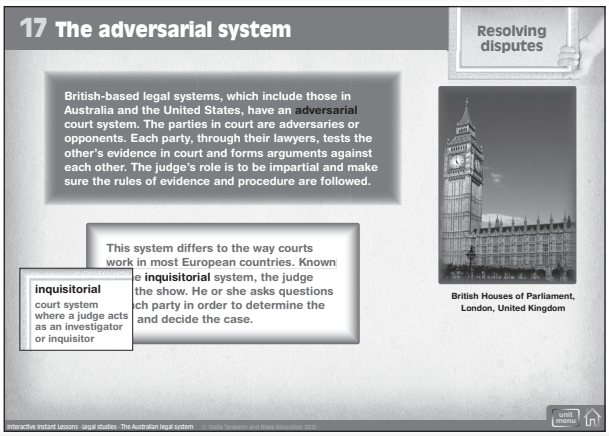
17 The adversarial system

INTERACTIVE INSTANT LESSON

Introduction

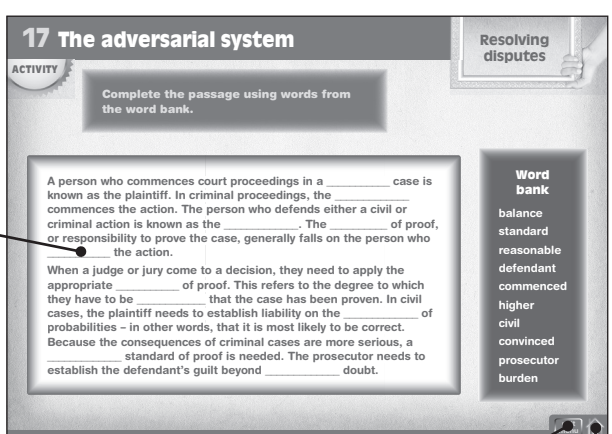
- *Explains the adversarial and the inquisitorial systems.*
- *Students learn how the adversarial system works in the courtroom.*
- *Image shown: British Houses of Parliament, London, United Kingdom. The Australian legal system is based on the British legal system.*



Interactive activity

Complete the cloze passage by dragging and dropping each word from the word bank into an answer space.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 17. The work sheets include:

- *true-or-false questions about the adversarial and inquisitorial systems*
- *a real-life case study about equity and the law*
- *questions about the maxims of equity and the law of trusts.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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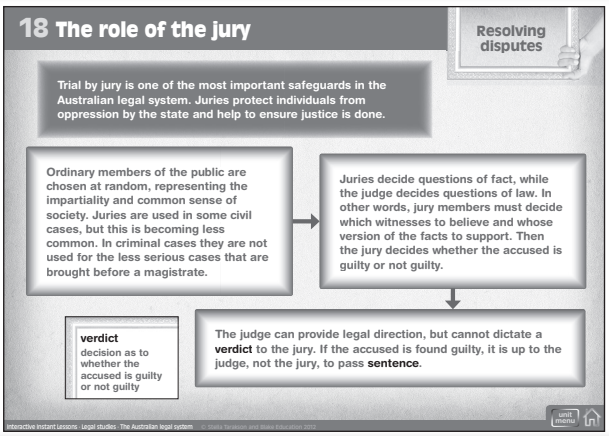
18 The role of the jury

INTERACTIVE INSTANT LESSON

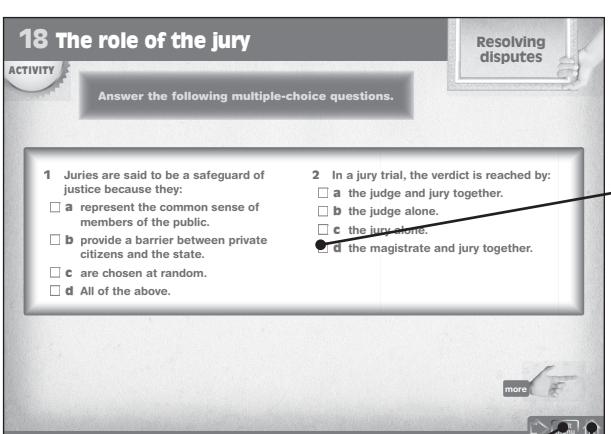
Introduction

- *Explains that trial by jury is one of the most important safeguards in the Australian legal system.*
- *Students learn how juries are chosen and their roles in civil and criminal cases.*



Interactive activity

Answer the multiple-choice questions about juries by marking the options you think are correct.



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 18. The work sheets include:

- *true-or-false questions*
- *three fictional case studies that involve juries*
- *an activity about questions of fact versus questions of law.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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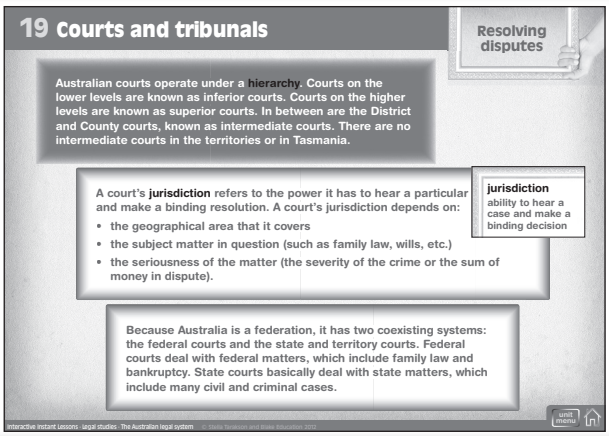
19 Courts and tribunals

INTERACTIVE INSTANT LESSON

Introduction

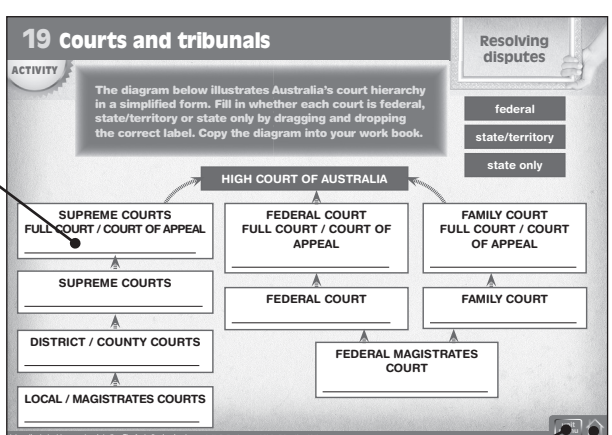
- *Explains the court hierarchy in Australia, and the federal courts and state and territory courts.*
- *Students learn about court jurisdictions and how the federal and state systems coexist.*



Interactive activity

Drag and drop 'federal', 'state/territory' or 'state only' into each of the spaces in the flow chart. (TIP: Ask students to copy the flow chart into their workbooks.)

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 19. The work sheets include:

- *questions about different courts and their jurisdictions*
- *a cloze passage about tribunals*
- *comprehension questions that compare courts and tribunals.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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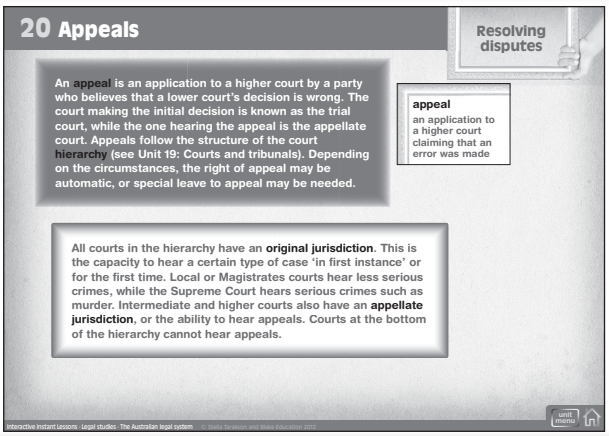
20 Appeals

INTERACTIVE INSTANT LESSON

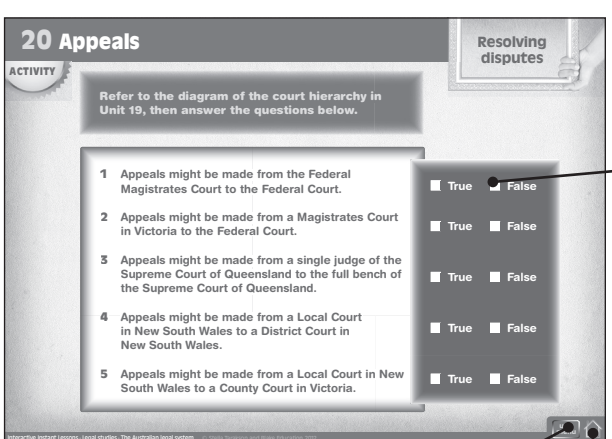
Introduction

- *Explains that an appeal is an application to a higher court by a party who believes that a lower court's decision is wrong.*
- *Students learn more about the court hierarchy, plus original and appellate jurisdictions.*



Interactive activity

Mark each of the five questions 'true' or 'false'. (TIP: Students can refer to the flow chart they copied into their workbook in Unit 19.)



If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'

Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 20. The work sheets include:

- *research activities about the Australia Act and the High Court of Australia*
- *a real-life case study about an appeal to the High Court*
- *comprehension and extension questions.*

NOTE: Suggested web addresses were functional at the time of publication, but teachers should check them for appropriate content and to ensure that they are still functional before use with students.

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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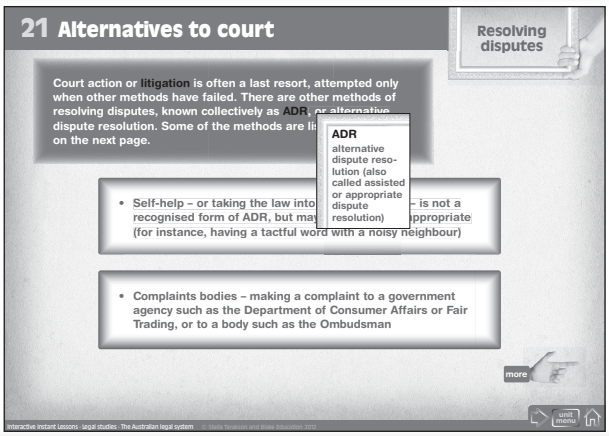
21 Alternatives to court

INTERACTIVE INSTANT LESSON

Introduction

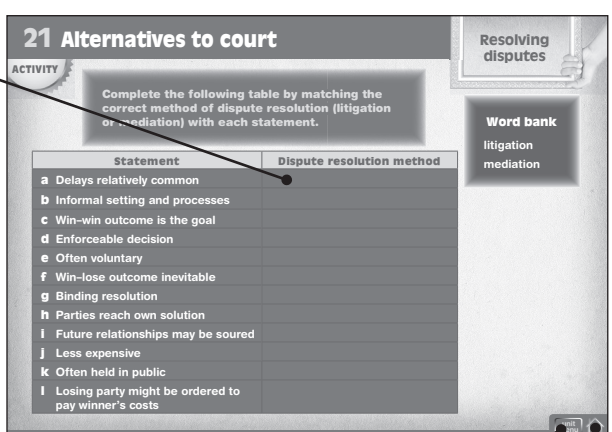
- *Explains that court action or litigation is often a last resort, attempted only when other methods have failed.*
- *Students learn about alternative dispute resolution (ADR) methods, including mediation and arbitration.*



Interactive activity

Drag and drop 'litigation' or 'mediation' into each of the spaces in the table.

If the answer is correct, the interactive activity will tell you 'Correct'. If the answer is incorrect, it will tell you 'Try Again'



Click to return to the unit menu

Click to return to the main menu

Work sheets

Consolidate student learning using the work sheets for Unit 21. The work sheets include:

- *true-or-false questions about ADR*
- *two fictional case studies*
- *comprehension questions.*

Students can use the interactive work sheets on the CD-ROM or the photocopiable work sheets from the book.

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INTERACTIVE INSTANT LESSONS – LEGAL STUDIES
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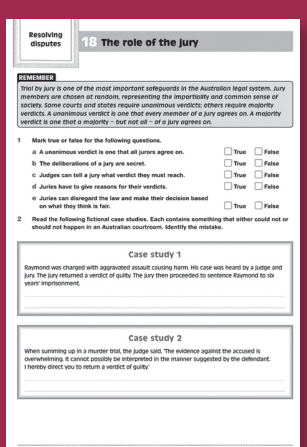
This simple-to-use interactive series is designed for the busy teacher who needs curriculum-specific, interactive instant resources. The series features full-colour lessons for the interactive whiteboard, supported with interactive activities and discussion questions, as well as student work sheets that can be completed onscreen or on hard copy. It is the ideal supplement to your existing resources, and it has the flexibility to be used in a range of learning environments and suits a range of teaching styles.

THE FOLDER CONTAINS

- Quick-reference guides that draw together each element of the lesson
- Photocopiable student work sheets
- A range of real-life and fictional case studies
- Selected answers for easy and efficient marking


Resolving disputes

18 The role of the jury

REMEMBER

Trial by jury is one of the most important safeguards in the Australian legal system. Jury members are chosen at random, representing the impartiality and common sense of society. Some courts and states require unanimous verdicts; others require majority verdicts. A unanimous verdict is one that every member of a jury agrees on. A majority verdict is one that a majority – but not all – of a jury agrees on.

1 Mark true or false for the following questions.

a A unanimous verdict is one that all jurors agree on. ☐ True ☐ False
b The deliberations of a jury are secret. ☐ True ☐ False
c Judges can tell a jury what verdict they must reach. ☐ True ☐ False
d Juries have to give reasons for their verdicts. ☐ True ☐ False
e Juries can disregard the law and make their decision based on what they think is fair. ☐ True ☐ False

2 Read the following fictional case studies. Each contains something that either could not or should not happen in an Australian courtroom. Identify the mistake.

Case study 1

Raymond was charged with aggravated assault causing harm. His case was heard by a judge and jury. The jury returned a verdict of guilty. The jury then proceeded to sentence Raymond to six years' imprisonment.

Case study 2

When summing up in a murder trial, the judge said, 'The evidence against the accused is overwhelming. It cannot possibly be interpreted in the manner suggested by the defendant. I hereby direct you to return a verdict of guilty.'

3 Australia's system of government

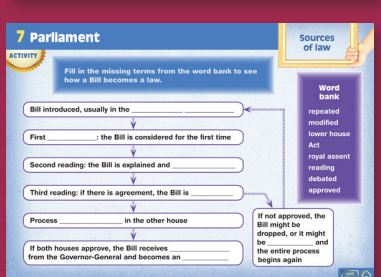
The Australian Constitution

The Australian Constitution came into operation on 1 January 1901. The Constitution is the foundation of the Australian system of government. Most parliaments in Australia are bicameral: the territories and Queensland, however, have only one house.

Parliament House, Canberra

The political party with the most members in the lower house of parliament makes up the government. The party that comes next is called the opposition.

The head of government is the leader of the political party in power. Australia has a federal system, made up of states and territories, so there is more than one government and thus more than one head of government. A head of government is different to the head of state, who has mainly ceremonial duties and represents the country internationally.


7 Parliament

Sources of law

ACTIVITY

Fill in the missing terms from the word bank to see how a Bill becomes a law.

Word bank: repeated, modified, lower house, Act, royal assent, reading, debated, approved

Bill introduced, usually in the _____

First _____: the Bill is considered for the first time

Second reading: the Bill is explained and _____

Third reading: if there is agreement, the Bill is _____

Process _____ in the other house

If both houses approve, the Bill receives _____ from the Governor-General and becomes an _____

If not approved, the Bill might be dropped, or it might be _____ and the entire process begins again

THE CD-ROM CONTAINS

- Interactive instant lessons for IWBs and laptops
- Pop-up definitions of legal terms
- Interactive activities to consolidate learning
- On-screen questions to facilitate class discussion
- Interactive PDF work sheets

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